BY ORDER OF THE COMMANDER
HOLLOMAN AIR FORCE BASE

AIR FORCE INSTRUCTION 31-218

HOLLOMAN AIR FORCE BASE SUPPLEMENT

24 JULY 2024

Security

MOTOR VEHICLE TRAFFIC SUPERVISION

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-publishing website at www.e-publishing.af.mil for downloading or ordering.

RELEASABILITY: There are no releasability restrictions on this publication.

OPR: 49 SFS/S5AR

Certified by: 49 SFS/CC
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Supersedes: AFI 31-218_HAFB Supplement, 8 August 2021

Pages: 58

This supplement implements DoDI 6055.04, *DoD Traffic Safety Program*, AFI 31-218(I), *Motor Vehicle Traffic Supervision.* It outlines procedures for granting, suspending, and revoking the privilege to operate a Privately Owned Vehicle (POV); maintaining driver performance records and driver improvement programs; enforcing installation traffic laws; and monitoring off-installation traffic activities. This supplement provides additional Air Force specific guidance. This supplement assimilates, to the maximum extent possible, the New Mexico Criminal and Traffic Law Manual. The purpose of this supplement is to establish standardized procedures for motor vehicle traffic supervision and to ensure the safe and efficient movement of vehicles, materials, and personnel to destinations on Holloman AFB (HAFB) or any of its properties. The provisions of this instruction apply to all personnel on HAFB or any of its properties. In cases where this supplement and the New Mexico Criminal Law and Traffic Law Manual are in conflict, the HAFB supplement will have precedence on this base. Violations of this instruction, higher headquarter directives, New Mexico Criminal Law and Traffic Law Manual, will be processed and disposed as outlined in AFI 31-218(I) and/or the Uniform Code of Military Justice (UCMJ), Federal, and/or assimilated law. This instruction also complies with the National Highway Safety Program Standards promulgated under the National Highway Safety Act of 1966. Attachment 1 provides a more detailed glossary of references and supporting information. Attachment 2 lists the installation traffic code. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Instruction (AFI) 33-322, Records Management and Information Governance Program, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Additionally, if the publication generates a report(s), alert readers in a statement and cite all applicable Reports Control Numbers in accordance with AFI 33-324. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of

Publication; route AF Form 847s from the field through the appropriate functional's chain of command.

SUMMARY OF CHANGES

This publication has been revised and must be completely reviewed. Updates includes licensing requirements for motorcycles is in line with New Mexico (NM) requirements (to include minors). Updated membership to Traffic Safety Coordination Group; removed delegation to unit commanders to determine suspensions, changed 10 working days to 14 calendar days for appeal submission and removed delegation authority from 49 MSG/CD. Updated training requirements for GOV-owned ATVs/UTVs and ROHVs. Added 1 point assessment and changed to two weeks driving suspension for no insurance, and identified traffic offenses requiring completion of Course V. Removed Traffic Safety Training Course on ADLS and replaced with 49 WG Safety Course V. Explained reason for one-side parking in areas of base housing. Personnel will refer to Army Regulation 190-5, *Motor Vehicle Traffic Supervision*, which is a joint publication in which AFI 31-218(I) uses as the core document for Motor Vehicle Traffic Supervision.

1-1. The instruction applies to all drivers on HAFB, to include all housing areas, MWR areas, and the Holloman Wastewater Evaporation Pond.

1-1.(7). **(Added)** This directive supplements, AFI 31-218(I), *Motor Vehicle Traffic Supervision* and New Mexico Traffic Laws.

1-4.e.(8). **(Added)** In accordance with (IAW) AFI 31-218(I), Proponent and exception to authority, the 49th Wing (49 WG/CC) has delegated traffic supervision matters responsibilities to the 49th Mission Support Group Commander (49 MSG/CC). 49 WG/CC must coordinate their letters of delegation through the 49th Wing Staff Judge Advocate (49 WG/SJA). As such, the 49 MSG/CC acts as the representative to identify high-risk drivers, evaluates administrative and disciplinary actions concerning traffic offenders.

1-4.e.(9). **(Added)** This instruction specifically adopts portions of New Mexico Statutes Annotated (NMSA) (Criminal and Traffic Laws). Although not restated in full in this instruction, provisions of the NMSA pertaining to motor vehicle and pedestrian traffic laws which are not addressed herein, are expressly adopted and made applicable to HAFB.

1-4.e.(10). **(Added)** Criminal violations of the NMSA are assimilated by the installation under U.S.C. Title 18, Section 13, and Department of Defense Directive (DoDD) 5525.4, *Enforcement of State Traffic Laws on DoD Installations.* Violations of NMSA may result in prosecution before local civil authorities.

1-4.e.(11). **(Added)** 49 SFS personnel will report all traffic related activities (violations, accidents, etc.) within Air Force Justice Information System (AFJIS).

1-4.(n). All commanders within the 49 WG and assigned tenant organizations will refer personnel with alcohol and/or drug abuse problems to the 49 MDG Alcohol and Drug Abuse Prevention Treatment Program (ADAPT).

1-5.e. **(Added)** To meet the goals and objectives necessary to establish and manage the HAFB traffic supervision program, the 49 WG/CC has created the Base Traffic Safety Coordination Group (BTSCG). The BTSCG is responsible for traffic devices, traffic signs, pavement markings, parking areas, and reserved parking areas. The BTSCG may meet quarterly or at the

call of the chairperson when a sufficient agenda has accumulated. Changes to this instruction in the areas that the BTSCG is responsible for will be submitted to the BTSCG for approval. The BTSCG Chairperson or Recorder will notify 49 SFS/S5AR if a change is approved. It will be composed of the following officials:

Table 1.5. (Added) Traffic Safety Coordination Group Officials.

Chairperson - 49th Mission Support Group Commander (49 MSG/CC)
Alternate Chairperson – 49 Mission Support Group Deputy Commander (49 MSG/CD)
Member – 49th Security Forces Squadron Commander (49 SFS/CC)
Member - 49th Civil Engineer Squadron Engineer Flight Representative (49 CES/CEN)
Recorder - 49th Civil Engineer Squadron Pavement Engineer (49 CES/CEOE)
Member - 49th Wing Chief of Ground Safety (49 WG/SE)
Member - 49th Logistics Readiness Squadron Ground Transportation (49 LRS/LGRDDO)
Member - Security Forces Reports and Analysis or Police Services Representative (49 SFS/S5)
Advisors - Pavements Engineer, Chief of Heavy Repair, Bargaining Unit Representative (Civilian Union), Base Traffic Engineer, and Non-Commissioned Officer in Charge (NCOIC), Police Services.

1-5.f. **(Added)** The 49 WG/CC, 49th Wing Safety (49 WG/SE), 49th Security Forces Squadron (49 SFS), 49th Civil Engineering Squadron (49 CES), 49th Logistics Readiness Squadron Ground Transportation (49 LRS/LGRDDO), and BTSCG will review high frequency accident locations to determine methods to reduce the number of accidents.

1-5.g. **(Added)** Unit commanders will ensure assigned personnel (military and civilian) are aware of the requirements of AFI 31-218(I) and this supplement. Additionally, it is the responsibility of all military and civilian personnel assigned to HAFB to ensure persons they sponsor (e.g., family, friends, associates, etc.) are aware of the requirements set forth in these publications.

2-1.(1). All vehicle operators must possess a valid driver‘s license. For active duty military personnel and their dependents who are legal residents of states other than NM and who have an expired driver’s license, their driver’s license shall be considered valid if (a) their state of residence does not renew driver’s licenses by mail, and (b) their state does have a military exception clause. Active duty military members and their dependents are responsible for obeying the driver’s licensing laws of their state of residence.

2-1.a.(4)(b).(1). Foreign military students and their family members’ international driver’s licenses are accepted on the installation.

2-1.a.(4)(b).(2). International driver's licenses are accepted by the local jurisdiction for 90 days for assigned resident personnel. A nonresident visitor’s international driver's license is valid for 30 days if employed in the state of NM or for 90 days if unemployed. Nonresident visitors include dependents of resident personnel. A valid international driver's license will be honored on HAFB for 45 days after arrival.

2-1.a.(4)(b).(3). Members active in the Armed Services of the U.S. and their dependents, who become permanent residents of NM, have 90 days to apply for a NM driver’s license. This must be accomplished within 90 days of becoming a resident of NM; personnel that remained

residents of another State are responsible for ensuring their own compliance with licensing law of their state of residence.

2-1.a.(4)(c). Proof of vehicle ownership, or State registration if required by the issuing State. All vehicles being operated on Holloman AFB will display license plates in accordance with the requirements of the state where the vehicle is registered.

2-1.(f). Proof of current vehicle insurance may be either an insurance identification card/document reflecting the inclusive dates of coverage and physically located in the vehicle or electronic proof of insurance via digital device (i.e., cellphone link to insurance company proof of insurance). A bill from an insurance company will not be accepted.

2-2.a.(2). Defense forces will conduct random installation entry/exit vehicle checks (RIEVCs) as directed by the Installation Commander or delegated authority. The intent is to protect the security of the command and to protect government property. RIEVCs are not conducted to establish probable cause; inspections ensure the security, military fitness, and good order and discipline of the command. The Installation Commander has delegated the authority to determine when, where, and how to implement the checks to the 49 MSG/CC. Specific procedures for RIEVCs are contained in the 49 WG Installation Defense Plan.

2-4.(1). The 49 WG/CC delegates the 49 MSG/CC the authority to administratively suspend or revoke driving privileges for lawful reasons both related and unrelated to traffic violations or safe Ground Transportation on HAFB.

2-4.(a).(1). 49 MSG/CC may suspend driving privileges for serious violations or when lesser measures fail to improve a driver's performance. The 49 MSG/CC may also suspend their driving privileges for up to 6 months if a driver continually violates installation parking standards, or habitually violates other standards considered non-moving in nature. 49 MSG/CC determines suspension and revocation policy for non-moving violations, as well as what constitutes a non-moving violation on the installation (i.e., performing unauthorized repair; failure to register; unauthorized modifications or alterations; failure to maintain safety standards, etc.). Cases involving the following violations should be considered for suspension action for a period of not less than 30 days and not more than 90 days:

2-4.a.(1).(a). **(Added)** Exceeding the speed limit by more than 10 miles per hour in conjunction with previous moving violations recorded within the past 6 months.

2-4.a.(1).(b). **(Added)** Conviction or administrative finding of commission of three moving violations within 12 months which do not otherwise require suspension or revocation.

2-4.a.(1).(c). **(Added)** Conviction or administrative finding of commission of three non-moving violations within a 6-month period.

2-4.a.(1).(d). **(Added)** Conviction or administrative finding of commission of reckless driving or speed contests.

2-4.a.(1).(e). **(Added)** Conviction or administrative finding of commission of leaving the scene (hit and run) of an accident resulting in property damage or personal injury.

2-4.a.(1).(f). **(Added)** The 49 WG/CC or designee should consider suspending driving privileges for a period greater than 90 days for members whose offenses are more frequent and/or more

severe than those listed above. Noncompliance with base registration requirements, violations of safety requirements or occupant restraint policy will result in the following action.

2-4.a.(1).(g). **(Added)** A sample of the Suspension letter is available by contacting the 49th Security Forces Squadron Reports and Analysis Section (49 SFS/S5AR) at 572-7251/1124.

2-4.b.(3). As delegated, the 49 MSG/CC will immediately revoke driving privileges for a period of not less than one year in the following circumstances:

2-4.b.(3).(c). **(Added)** When a serious incident involving a motor vehicle occurs and the 49 WG/CC or designee determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline of military personnel.

2-4.d. **(Added)** Unit commanders or staff agency principals may request suspension of a military member's, a family member's, a base contractor or a civilian employee's driving privileges by forwarding a letter requesting suspension/revocation to 49 MSG/CC through 49 SFS/S5AR.

2-5.b.(1). **(Added)** The suspension or revocation of installation driving privileges will be extended until the offender completes the 49 WG Safety Office Course V or an off-base equivalent course (approved/used by NM state, county or city courts), drug or alcohol program (ADAPT or original certificate of completion for Substance Abuse Counseling taken off base). These requirements are further listed within the Notification of Preliminary Suspension of Base Driving Privileges Memorandum.

2-5.(b).(2) **(Added)** The unit commander may schedule personnel for remedial driver's training when reliable evidence indicates that the training would be beneficial to the individual. 49 SFS/S5AR will be notified of course completion. Individuals should be considered for remedial training for the following:

2-5.(b).(2)a. **(Added)** When the individual is determined to be at fault in any vehicle accident involving personal injury.

2-5.(b).(2).b. **(Added)** When determined by an accident investigation board or the unit commander that the individual needs the training.

2-5.(b).(2).c. **(Added)** Prior to restoration of driving privileges following a suspension or revocation period, unless suspended strictly for nonmoving violations.

2-6.b. **(Added)** 49 SFS/S5AR will, when commanders are pursuing suspending or revoking someone's driving privileges, notify that person in writing and tell them what actions are being taken and the reason for it. The letter will also include procedures if the person requests an administrative hearing. Coordinate this notice with 49 WG/SJA.

2-6.b.(1). **(Added)** The 49 WG/CC has authorized the issuance of a preliminary suspension letter, intended to effect the immediate suspension of driving privileges pursuant to AFI 31-218(I), paragraph 2-4a.(3). A sample of this letter is available by contacting 49 SFS/S5AR at DSN 572-1124/7251.

2-6.b.(2). **(Added)** 49 MSG/CC may impose multiple suspensions to run consecutively.

2-6.b.(3). **(Added)** Violations that warrant suspension or revocation of base driving privileges, in addition to those listed in AFI 31-218(I), may be found in Table 5.1 of this instruction. *NOTE*: Any individual who is on a suspension or revocation and is charged with another

violation that warrants suspension or revocation is subject to the additional suspension or revocation being imposed. If imposed, the additional suspension or revocation will run consecutively to the term of the original suspension or revocation. Any individual charged with driving on the base while base driving privileges are suspended or revoked is subject to a revocation for an additional two years. The two additional years will run consecutively to the term of the original suspension or revocation

2-6.b.(4). **(Added)** Except for incidents outlined in AFI 31-218(I), paras 2-4.a(3)(a) through (d), do not suspend or revoke a person's driving privileges until they are notified (or reasonable attempts made) and offered an administrative hearing. 49 MSG/CC determines when a suspension or revocation takes effect once making or attempting to deliver this written notice. Only in unusual circumstances should verbal notifications be made. Unless an application for a hearing is made within the prescribed 14 calendar day period, suspension or revocation takes place on the prescribed date and time. 49 MSG/CC determines the time period for a suspension or revocation action after receiving a request for an administrative hearing. For offenses outlined in AFI 31-218(I), paras 2-4.a.(3)(a) through (d), 49 MSG/CC will authorize an immediate preliminary suspension based on reliable evidence. Such evidence can include witness statements, a military or civilian police report, chemical test results, refusal to complete chemical testing, video recordings, written statements, field sobriety test results, or other evidence.

2-6.b.(5). **(Added)** The 49 MSG/CC are designated hearing officers for suspensions or revocations. He or she must conduct the hearing and reviews evidence from personnel relevant to the case (i.e., the individual's statement) and other relevant statements on the individual's behalf. The person doesn't have to be present during the hearing. For active duty military personnel, send a written notice of preliminary suspension for intoxicated driving to their commander or reasonable equivalent. If a hearing is requested, the member will coordinate with 49 SFS/S5AR to schedule the hearing. For non-installation, non-DoD affiliated civilians, present the written notice of preliminary suspension for intoxicated driving either in person (preferred) or by certified mail. If the person is employed on the installation, send the notice to their commander or reasonable equivalent. The DFC will complete preliminary revocation of driving privileges for intoxicated driving offenses after reviewing all reliable evidence.

2-6.b.(5).1. **(Added)** If 49 MSG/CC revokes or suspends the driving privileges of an active duty military member, this member shall have the right to appeal the suspension to the 49 MSG/CC. The appeal or request for reconsideration shall be forwarded through the individual's unit commander, 49 SFS/S5AR, 49 WG/SJA, and to the 49 MSG/CC for reconsideration.

2-6.b.(6). **(Added)** Traffic citations (DD FM 1408) which are contested by the violator and the violator's commander will be reviewed by the 49 SFS/CC for resolution. The patrol person issuing the ticket or completing the report may be required to provide a statement as support documentation.

2-6.b.(7). Persons who have been apprehended or detained and cited for intoxicated driving offenses shall be issued a preliminary notice of suspension of base driving privileges memorandum by on-duty Security Forces or 49 SFS/S5AR. A preliminary suspension for intoxicated driving remains in effect until the installation commander makes a final decision. Requested hearings must take place within a reasonable period, which is determined by the 49 MSG/CC.

2-6.c.(7). When feasible, the preliminary suspension letter should be issued to the driver in the presence of the unit commander, first sergeant, supervisor, or civilian supervisor representative. If personal service of the letter is not feasible, Security Forces shall brief the driver's first sergeant or commander of the incident and suspension and send the letter to the driver via certified mail. For on-base incidents of intoxicated driving, the letter should be issued before the release of the driver from Security Forces custody. For off-base incidents of intoxicated driving, violators must report to the 49 SFS/S5AR within twenty-four (24) hours or the next duty day from the time they are released from detention or custody of apprehending authorities, with their unit commander, first sergeant, supervisor, or civilian supervisor representative for issuance of the letter.

2-6.c.(2). **(Added)** Reliable evidence shall be coordinated and reviewed by 49 WG/SJA, 49 WG/CC, or the designated representative, the 49 MSG/CC, as soon as possible, but no later than three duty days following final assembly of evidence.

2-6.c.(6). For on-base incidents of DUI involving DoD civilian personnel employed on the base, the unit supervisor will be contacted and briefed. A supervisor who does not wish to respond will be briefed over the phone on the available evidence. Regardless of whether the individual is an employee of the base or not, the detaining Security Forces member will issue the suspension notice to the individual. In any other situation involving civilians where notification cannot be made in person to the sponsor, notification of suspension should be attempted by certified mail through 49 SFS/S5AR. These notices will be prepared by 49 SFS/S5AR with coordination through 49 WG/SJA.

2-6.c.(7).(b). Personnel have the right to request restoration of driving privileges pending investigation or resolution of the incident and will direct the request letters to the 49 MSG/CC through 49 SFS/S5AR.

2-6.c.(8). Members may request a hearing before the 49 MSG/CC for on-base offenses. (*NOTE*: Revocations or restrictions resulting from off-base incidents are subject to the laws and codes of the state of New Mexico and cannot be overturned by a military entity). Requests for hearings must be in writing and submitted within 14 calendar days of receipt of the signed preliminary revocation letter. When the request is submitted to 49 SFS/S5AR for processing from the requestor, the hearing shall be held within 14 calendar days of the request. If no decision is made within 14 calendar days of the preliminary suspension or revocation, the member must make notification to 49 SFS/S5AR in order to restore full driving privileges until the accused is notified of the final hearing results. 49 MSG/CC or designee decisions are final and may only be appealed in case of hardship or mission essential needs.

2-6.c.(8).a. **(Added)** If a member does not request a hearing, driving privileges are revoked for 1 year effective the date of receipt of the initial preliminary suspension letter.

2-8.j. The unit commander will refer military personnel involved in any intoxicated (drug or alcohol) motor vehicle incident to 49th Medical Group (49 MDG) ADAPT clinic for evaluation within 7 days.

2-8.k. After coordination with the 49 WG/SJA, unit commanders will determine whether to direct drug and/or alcohol testing within 24 hours of suspected alcohol related motor vehicle/traffic incidents or misconduct, episodes of aberrant or bizarre behavior or where there is reasonable suspicion of drug use and the member refuses to provide consent for testing.

Commanders are also encouraged to ensure Blood Alcohol Tests (BAT) are taken as soon after the incident as possible to determine the level and intensity of alcohol involvement and whether a member is dependent on alcohol or other drugs. The results of this screening shall be made available to the command having jurisdiction over the case.

2-10.c. If absolutely necessary to do so (and for on base privileges only) coordinate with the 49 WG/SJA.

2-10.e. Requests to allow operation of government vehicles during a period of suspension or revocation must be justified by the unit commander as mission essential.

2-10.e.(1). **(Added)** The 49 WG/CC or 49 MSG/CC may authorize restricted driving privileges and determines if/when pass systems will be used.

2-10.f. Written permission for restricted driving privileges will be obtained from the 49 MSG/CC. To request restricted driving privileges or probation, the suspended/revoked driver shall submit a written request, endorsed by his/her commander, sponsor's commander, or organization chief through 49 SFS/S5AR and 49 WG/SJA to 49 MSG/CC. When an individual has been authorized restricted driving privileges, a copy of the limitation letter will be provided to 49 SFS/S5AR. The individual will keep a copy of the limitation letter on his/her person or in the vehicle while operating the vehicle and present it when requested by security forces. Limited driving privileges must be specific, indicating type of limitation and time and date the privileges are reinstated for. If the suspension or revocation was the result of civil court action, close coordination is required with 49 WG/SJA regarding any restricted driving privileges.

2-10.f.(1). **(Added)** If restricted driving privileges or probation are granted and the driver is subsequently involved in a chargeable accident or moving violation, restricted driving privileges shall be withdrawn and the original period of suspension shall be reinstated, in addition to any further suspension or revocation action taken for the offense that occurred

2-11.(a). Statutory authorities exist within NM for reciprocal suspension and revocation of driving privileges.

2-11.(a).1. **(Added)** 49 WG/CC honors revocations issued by other installation commanders regardless of service component affiliation. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation before reassignment. Installation commander may honor suspensions as determined on a case by case basis. Anyone with suspended or revoked privileges may petition an installation commander for partial or limited driving privileges.

2-11.b. 49 MSG/CC may consider the reinstatement of driving privileges for persons awaiting the results of civil court action.

2-11.c.(1). When states suspend or revoke a license, automatically terminate the individual’s installation GOV and POV driving privileges. Take only comparable military administrative actions (suspensions, revocation, or point assessment) for those off-base violations reported by local or state authorities.

2-13.a. **(Added)** Upon completion of the required time of suspension or revocation, reinstatement of driving privileges is automatic, provided all proper poof of completion of requirements in AFI 31-218(I), para 2-13 have been provided to 49 SFS/S5AR. IAW DODI 6055.04, *DoD Motor Vehicle and Traffic Safety*, Section 3, para 3.7.c., and AFI 91-207, *The U.S.*

Air Force Traffic Safety Program, para 4.6.*,* the unit commander or designee must ensure military or civilian personnel that were driving a GOV and are convicted for any moving violation, receive a revocation or suspension or when the operator is determined to have been at fault in a traffic mishap successfully completes Driver Improvement and Rehabilitation Course. These individuals, inside or outside normal duty hours, must attend the course(s) or lose installation driving privileges. This is conducted by the 49 WG Safety Office Course V, Driver Improvement Program (This course must be administered by 49 WG/SE or an off-base court-approved equivalent). It is the individual's responsibility to coordinate with their unit safety representative, who will in-turn coordinate course attendance with the 49 WG Safety Office. If the suspension or revocation was due to driving while intoxicated or a safety infraction (i.e., no headlight, DUI offense, failure to use seatbelt, speeding, traffic accident where driver is at fault, etc.) Course V is required, and successful completion of ADAPT program must be verified through the 49 MDG. Reinstatement requirements of individual's home State and/or State the individual may have been suspended in have to be met for reinstatement purposes. If the suspension or revocation was due to not having proper insurance, the unit commander or designee must ensure there is proof of compliance prior to approving and forwarding the individual's request for reinstatement of driving privileges to 49 SFS/S5AR. Contact 49 SFS/S5AR for a sample request for reinstatement of driving privileges letter.

2-13.b. **(Added)** 49 SFS/S5AR shall conduct a history check and verify the required suspension and/or revocation period has ended and ensure requirements in para 2-13 above are met.

2-13.c. **(Added)** Driving before formally being reinstated is a violation of the revocation.

2-13.d. **(Added)** Any military member or non-military member whose driver's license or privilege to drive a motor vehicle has been suspended or revoked, or by operation of law pursuant to this instruction or who has been forbidden, as prescribed by instruction, or by the 49 WG/CC or designee, to operate a motor vehicle within the confines of HAFB, shall not drive any motor vehicle or equipment on any highway within the confines of HAFB until the period of such suspension or revocation has been terminated.

4-1.b. 49 CES/CEN Chief is responsible to determine if a Traffic Circulation/Transportation Plan is required, to determine the frequency of update and to establish the coordination requirements. If there is a current plan in place, a copy will be provided to 49 SFS/S5AR.

4-2. 49 WG/CC has established the HAFB Traffic Code for operation of motor vehicles on HAFB at ATTACHMENT 2. The HAFB traffic code contains basic rules of the road and to the degree possible, conforms to the traffic code of New Mexico. The 49 SFS/CC is responsible for developing the traffic code.

4-2.a. **(Added)** The traffic code for operation of motor vehicles on HAFB incorporates Air Force and DoD policy on safety and motor vehicle operation as well as the New Mexico Motor Vehicle Code found in Chapter 66 NMSA 1978, Motor Vehicle Code of the New Mexico Criminal Law and Motor Vehicle Handbook, are assimilated into this instruction, and applies to all pedestrians and individuals operating motor vehicles, motorcycles, motor-driven cycles, all-terrain vehicles (ATVs), bicycles, tricycles, unicycles, skates, roller-blades, skateboards, and scooters on base.

4-3.d. 49 SFS/S5AR will provide quarterly input through the 49 SFS/CC to the 49 WG Status of Discipline review board which will include results of traffic violations. The 49 SFS/CC will determine when traffic accident data warrants inclusion.

4-4.b.(1). 49 SFS/S3T will ensure operators of speed measuring devices attend formal training and are locally certified by competent authorities.

4-4.b.(1).a. **(Added)** The 49 SFS is recognized by the State of New Mexico as a federal law enforcement agency. As such, the requirement for formal speed measuring device training for law enforcement patrols is conducted by an approved state agency. Supporting documentation shall be maintained by 49th Security Forces Squadron Training (49 SFS/S3T).

4-5.a. **(Added)** Security Forces will respond to all GOV and POV major and minor accidents occurring on HAFB and will accomplish the appropriate paperwork and AFJIS reports. Minor accidents are not entered into AFJIS, unless the accident involves injuries, and/or involving criminal components (Refer to DAFI 31-115, *Law and Order Operations*, Table A3.1.). Major accident investigations will be completed on motor vehicle accidents involving government vehicles and/or involving privately owned vehicles, on the installation involving a fatality, personal injury, disabling damage, or, as determined by the 49 WG/CC, estimated property damage over $10,000.

4-6.a. Anyone involved in an on-base vehicle accident must immediately report the incident to Security Forces. Personnel operating a GOV off base must report off-base accidents to Security Forces, if they involve injuries to military personnel or damage to military vehicles/property. The 49 SFS/CC has also (with Installation Commander's approval) developed local response and investigative procedures for various types of accidents to include minor accidents. This matrix and investigative procedures are maintained at Base Defense Operations Center (BDOC).

4-7. 49 SFS/S3O (Police Services) will analyze data derived from traffic accident investigations to determine accident causes. When frequent accidents occur in one area, analyze location conditions, type of accidents, and other factors in an attempt to isolate causes. With the exception of privacy act information, make accident data and trend analysis available to agencies requesting the data for reporting and analytical purposes. With the exception of requests filed under the Freedom of Information Act, the DFC determines the agencies cleared to receive accident and incident data. Personnel requesting a copy of the major/minor accident report and the AF Form 1315, *Accident Report* can contact 49 SFS/S5AR, 5-7 working days after the accident. Third party information is not released unless formally requested through appropriate channels.

4-7.d. The Traffic Trend Analysis shall be published by 49 SFS/S5AR or S3O when requested by authorized agencies. The Traffic Trend Analysis shall be provided to 49 CES, 49 WG/SE, 49 MSG, 49 WG, and 49th Security Forces Squadron Operations Support (49 SFS/S3O). Selective Enforcement schedules shall be provided on a weekly basis to the law enforcement patrols by 49 SFS/S3O.

4-8.b. Reserved Parking. 49 WG/CC determines reserved parking policy for HAFB through the BTSCG. For information of reserved parking, contact 49 CES/CEOE, Operations Engineering. Number of available spaces, facility design and layout, traffic flow, and number of vehicles using facilities will help determine the number and location of reserved parking spaces.

4-8.b.(1). **(Added)** Reserved parking will be generally granted according to the following priorities:

4-8.b.(2). **(Added)** Handicapped stalls as required by the Americans with Disabilities Act guidelines. Only state-issued disability license plates or disabled parking placards authorize handicapped parking on base.

4-8.b.(3). **(Added)** Generals, colonels, chief master sergeants, and equivalent grades of other services, and GS-14 and above.

4-8.b.(4). **(Added)** Organizational commanders and first sergeants.

4-8.b.(5). **(Added)** Emergency and mission essential government vehicles.

4-8.b.(6). **(Added)** Visitor/Customer Service only facilities with a customer service function. These requests will be considered by a case-by-case basis. These parking spaces will have a time limit.

4-8.b.(7). **(Added)** Procedures. Facility managers will serve as points of contact for reserved parking designations in parking lots servicing the facility. For parking lots servicing more than one facility, requests for reserved parking designations will be coordinated with appropriate facility managers.

4-8.b.(8). **(Added)** The requesting facility manager will submit a written request (NextgenIT Work Request) work order for reserved parking spaces to 49 CES, Customer Service after coordination with other facility managers, if appropriate. The requesting facility manager will also coordinate the work request with 49 SFS/S3O, and 49 WG/SE prior to submitting to 49 CES, Customer Service. Requests will be completed as follows:

4-8.b.(9). **(Added)** Provide a map depicting the parking area, total spaces, number, and desired location of the reserved spaces, designation for each space and the name and duty phone of the facility manager submitting the request.

4-8.b.(10). **(Added)** The base traffic engineer will evaluate requests after requestor coordinates with 49 SFS/S5AR and 49 WG/SE. The base traffic engineer will submit a recommendation to the Work Order Review Board.

4-8.b.(11). **(Added)** Requests for additional reserved parking beyond those allowed by the BTSCG will be considered or approved by the 49 MSG/CC. The request must be in writing to 49 MSG/CC coordinated and endorsed by 49 CES/CC, 49 SFS/CC, and 49 WG/SE.

4-8.b.(12). **(Added)** Upon approval 49 CES will install the appropriate signage. 49 CES is the only organization authorized to install, remove, or fabricate reserved parking signs.

4-8.b.(13). **(Added)** Submit for removal of reserved parking on NextgenIT Work Request.

4-8.b.(14). **(Added)** Temporary Reserved Parking. Unit commanders, or equivalent, may establish temporary parking limitations, to include reserved parking spaces or areas, to support special functions occurring on base and will do so by erecting official signs and/or barricades.

4-8.b.(15). **(Added)** 49 CES is responsible for the design, establishment, and construction of all roadways and parking areas on base, the installation or removal of parking lot and traffic control signs and signals, and the design and placement of roadblocks.

4-8.(b).(16). **(Added)** All requests for construction, installation, or removal of traffic signs and markings will be submitted through 49 SFS/S3O and 49 CES/CEOE, in turn.

4-9.a. 49 SFS/S5AR will refer traffic violations committed by anyone on Holloman AFB other than active duty military personnel using Central Violations Bureau (CVB) CVB Violation Notice, United States District Court Violation Notice, to the U.S. District Court, Las Cruces, NM. The 49 WG/SJA maintains an active program with the local U.S. Magistrate Court to process traffic violations committed by civilians.

4-9.a.(4). **(Added)** The installation commander may consider restricting or withdrawing driving privileges when necessary, IAW paragraph 2-4.

4-9.b.(1). Issue traffic violators on military installations a DD Form 1408, *Armed Forces Traffic Ticket*, or US District Court Violation Notice (CVB). The DD Form 1408 is issued to the following personnel: active duty personnel, Cadets/Midshipmen of the Military Academies to include the Coast Guard Academy, reservists on orders or performing inactive duty training including commuting to and from training, and guardsman in federal service under Title 10 of the United States Code. Title 10 status is reflected on the guardsman's orders. Issue civilians the CVB Violation Notice. The CVB Violation Notice will be issued to civilians, civilian employees, dependents, juveniles, and retirees for all traffic violations on the exclusive area of HAFB.

4-9.b.(1).a. **(Added)** Personnel authorized to issue DD Forms 1408 after being trained by 49 SFS/S3T and 49 SFS/S3O personnel are all Security Forces personnel, Security Forces Augmentees and Individual Mobilization Augmentees.

4-9.b.(1).b. **(Added)** Only Security Forces personnel are authorized to issue CVB Violation Notice, after receiving training from 49 SFS/S3T and/or 49 SFS/S3O.

4-9.b.(1).c. **(Added)** A DD Form 1408 may be issued for a moving or non-moving violation by any active duty military personnel and for civilian government employees who are operating a GOV. Any civilian operating a POV in exclusive jurisdiction areas of the installation may be issued the CVB Violation Notice for moving or non-moving violations. Civilian personnel may be issued a CVB Violation Notice for parking violations (parking in a handicapped parking slot or handicapped zoned area). Any civilian personnel operating a POV in proprietary jurisdiction areas may be stopped and briefed for minor moving violations and detained for Otero County Sheriff response for more serious offenses. Issuance of citations, for any violation that does not result in death, personal injury or property damage; will be at the discretion of the certified patrolman or responsible shift leader.

4-9.b.(2). 49 SFS/S5AR will provide a copy of reports on military or DoD civilian employees apprehended for intoxicated driving to the 49 MDG ADAPT clinic.

4-9.c. **(Added)** Once issued, process traffic citations (DD Forms 1408 and CVB Violation Notice) as follows:

4-9.c.(1). **(Added)** DD Form 1408:

4-9.c.(2). **(Added)** Citations issued by on-duty Security Forces personnel will be forwarded at the end of the shift to 49 SFS/S3O and 49 SFS/S5AR, in-turn, for processing.

4-9.d. **(Added)** CVB Violation Notice:

4-9.d.(1). **(Added)** 49 SFS/S5AR, for those citations issued by on duty Security Forces personnel, forward the traffic citation for processing on the first duty day after the issuance of the citation.

4-9.d.(3). **(Added)** Use the CVB Violation Notice to refer civilian violators of state and federal traffic laws to the appropriate U.S. Magistrate Court. 49 SFS/S5AR will notify the commander, first sergeant, or supervisor when any DoD civilian employees is cited with the CVB Violation Notice. If requested, locally reproduce a copy of the CVB Violation Notice and make it available to the commander, first sergeant, or supervisor. 49 SFS/S5AR will track the notifications made to commanders, first sergeants or supervisors.

4-9.d.(4). **(Added)** Use the statement of probable cause on the rear of the CVB Violation Notice or complete a separate statement via AF IMT 1168, *Statement of Suspect, Witness, Complainant*. When completing a separate statement, the back of the CVB Violation Notice will state to refer to the written statement.

4-9.d.(5).a. **(Added)** 49 SFS/S5AR processes the citation as required and forwards the white copy of the citation to the Clerk, U.S. District Court, CVB, P.O. Box 780549, Philadelphia, PA. The Clerk, U.S. District Court is responsible for scheduling the appropriate court date with 49 WG/SJA, recording the receipt of any collateral forfeiture received, and notifying 49 SFS/S5AR of the status of each CVB Violation Notice issued.

4-9.d.(5).(d) **(Added)** Preparation of the CVB Violation Notice. This pre-numbered form is issued through standard publication channels and is only accountable once it is issued to an offender. Before issuing this form, stamp (type) in black ink the specific address of the clerk of the U.S. District Court CVB to which the violator must address the communication, on the reverse of the violator's copy (manila card stock) of the four-part form. Determine the entry for the amount of the fine, mandatory court appearance of the offender, and the date of appearance according to guidance furnished by the governing district court.

4-9.d.(5).e. **(Added)** The preset collateral amount (per U.S. Code and NM Code) will be entered in Box B, or Box A will be checked to indicate a mandatory appearance before a U.S. Magistrate Judge. As prearrangements of dates and times are not feasible, if a mandatory appearance is required, the box showing time and place of the court appearance will not be filled in, but notification of a summons will be forwarded to the individual at the address given at a future date. Personnel who issue mandatory appearance violation notices will appear before the U.S. Magistrate Judge, if required, as coordinated with 49 WG/SJA.

4-9.d.(5).f. **(Added)** Identify the assimilation of state traffic laws by a specific state code reference in the CODE SECTION block of the CVB Violation Form or in a complaint filed with the U.S. Magistrate Judge.

4-9.d.(5).g. **(Added)** If offenders wish to appear before a U.S. Magistrate Judge, they do not send in the collateral amount by mail. The U.S. Magistrate Court will inform them of their court appearance date. The U.S. Magistrate Judge may require the posting of a bond before the hearing is scheduled.

4-9.d.(5).h. **(Added)** In instances where a mandatory appearance is not required, if offenders wish to appear before a U.S. Magistrate Judge, they do not send in the collateral amount by mail, requesting instead an appearance date by checking the appropriate line on the CVB Violation Notice and mailing the CVB Violation Notice to the CVB. The U.S. Magistrate Court will

inform them of their court appearance date. The U.S. Magistrate Judge may require the posting of a bond before the hearing is scheduled.

4-9.d.(5).i. **(Added)** Once the status of a CVB Violation Notice (i.e., payment of collateral forfeiture, court finding and/or sentence, etc.) is known, 49 SFS/S5AR will annotate it and file the citation in accordance with the prescribed directives.

4-9.e. **(Added)** 49 SFS/S5AR's notification to the violator's first sergeant and unit commander can be accomplished either via e-mail, or Official Mail Center; however, the process must be standardized and provide accountability. 49 SFS/S5AR will track action back from commanders/first sergeants.

4-9.e.2. **(Added)** If the violator does not wish to rebut the violation, 49 SFS/S5AR inputs the citation into AFJIS; S5AR will then check the appropriate response on the back of the citation and the violator requires no further action. NOTE: If through accumulation of points or offense the violator has met the requirement to revoke/suspended their driving privileges, advise the violator's first sergeant/commander (for military members) they need to escort the member to 49 SFS/S5AR for issuance of revocation/suspension letter. If unable to contact the violator of the revocation/suspension, it will be sent via certified mail.

4-9.e.4. **(Added)** If the violator does not notify 49 SFS/S5AR within five duty days of their intent to rebut the citation (refer to paragraph 4-9.e.2. for rebuttal procedures), 49 SFS/S5AR will complete the administrative process by writing on the back of the white copy "Did not rebut" and endorse the infractions on the DD Form 1408. However, 49 SFS/S5AR must still notify the violator's first sergeant and unit commander of the violation. If the violator is assigned to another installation, the citation will be forwarded to the assigned installation for action. It is the responsibility of the installation to which the member is assigned, to input the citation and complete the administrative action in AFJIS.

4-9.e.5. **(Added)** Traffic tickets (DD Fm 1408) which are submitted for rebuttal and are within five duty days from the date of violation, the individual prepares the rebuttal, in letter format (49 SFS/S5AR shall provide the template) and forward to 49 SFS/S5AR within ten duty days of the receipt of the citation with endorsement by his/her unit commander. The 49 SFS/S5AR shall process a ticket rebuttal package. The package shall be forwarded to 49 SFS/CC for recommendation and further investigation. The package is forwarded to 49 MSG/CC for final decision and no other appeals will be made. Civilians and military dependents who disagree with the issuance of a CVB Violation Notice shall wait until notified by the CVB of a court appearance date and appear before the U.S. Magistrate Judge.

4-10.a. As a minimum, the 49 SFS/CC will train installation law enforcement personnel in drunken driving enforcement standards and processing and will detail the training within 49 SFS Operating Instructions (OI).

4-10.a.(3). Patrolman will perform the standardized Air Force field sobriety tests consist of the one leg stand, the walk and turn, and the horizontal gaze nystagmus. If required by NM standards, perform any sobriety test requirements in addition to the above standard Air Force tests. Use the DD Form 1920, *Alcohol Incident Report* to document test results.

4-10.c. 49 SFS adheres and follows laws, standards and breath-testing equipment/devices certified for use within the State of New Mexico. Ensure only trained personnel administer tests as specified within AFI 31-218(I) and NM standards.

4-10.c.(1). **(Added)** Authorized personnel shall receive initial and refresher certification training from the New Mexico Scientific Lab Division prior to operating the breath-testing device.

4-10.e. **(Added)** Personnel authorized to operate the breath-testing device shall be appointed in writing by the 49 SFS/CC. When the Intoxilyzer is inop and BrAC cannot be obtained, the on-call medical personal should be contacted and an AF FM 1176 should be completed in order to obtain blood instead or individuals apprehended for driving under the influence are transported, upon approval from 49 SFS/S3O and/or 49 WG/SJA, to Alamogordo Department of Public Safety for testing. Coordination with APD will be conducted prior by 49 SFS/S3O. Breath-testing devices results are included in revocation/suspension packages.

4-10.e. **(Added)** 49 SFS personnel shall adhere to NM standards and 49 SFS OIs for annual recertification requirements, proficiency and intervals of refresher training.

4-10.f. **(Added)** Document all driving while intoxicated offenses using AFJIS, or if unavailable, use an AF Form 3545, *Incident Report*, to ensure accurate reporting under the Defense Incident-Based Reporting System. Offenders are to be added to the Defense Biometric Identification Systems (DBIDS) for tracking purposes.

4-11.a.(2). Suspend driving privileges if the percentage of alcohol in a person's blood is over 0.05 (BAC/BrAC) but less than 0.08 (BAC/BrAC), presume the person may be impaired. Consider this standard with other competent evidence in determining whether the person was under the influence of alcohol. Other competent evidence includes properly completed DD Forms 1920, as well as a determination made by the apprehending officer that the subject failed the field sobriety test due to impairment of the subject's motor skills, which was a direct result of the subject being under the influence of alcohol or other drug, observations by patrolman, subject's confessions, admissions, and video (if utilized). Drunk or impaired means any intoxication which is sufficient to impair the rational and full exercise of the mental or physical faculties.

4-11.a.(4). **(Added)** Persons under the age of 21, when in the United States or where legal alcohol consumption age is 21, operating a motor vehicle with a BAC or BrAC level standard of .01 or higher is reason for automatic suspension.

4-12.c.(1). 49 MDG will immediately notify and brief the 49 SFS/CC and AFOSI, Det 423 upon death of any person involved in a motor vehicle accident.

4-13.c. **(Added)** On HAFB, the installation commander authorizes the use of certain evidential tests for screening individuals suspected of driving while intoxicated. These tests include the following: the walk and turn, one leg stand, finger to nose, and the more advanced horizontal gaze nystagmus. Pending the results of the screening (field sobriety) tests, a sample of the suspected individual’s breath or blood will be sought to determine the blood alcohol concentration. These results will be recorded on the DD Form 1920.

4-15.b. **(Added)** Nonconsensual bodily fluid extractions (blood or urine) require valid search and seizure authorizations. As a general rule, nonconsensual extractions are considered only when an individual is involved in an accident in which there is a death, serious personal injury, or significant property damage. Probable cause must exist to believe the individual was driving or was in control of a vehicle while under the influence of an intoxicant. Conduct the extraction in accordance with the following procedures: 1) A search authorization by an appropriate commander or military magistrate obtained pursuant to Rule 315, Military Rules of Evidence, is

required prior to such nonconsensual extraction; 2) exigencies may arise that preclude the need of first obtaining a search authorization, such circumstances occur when there is a reasonable belief that the delay necessary to obtain a search warrant or search authorization would result in the removal, destruction, or concealment of the property or evidence sought 3) Conduct warrantless searches only after coordination with the servicing staff judge advocate and attempts to gain authorization from an appropriate official fail because of the unavailability of the appropriate commander or military magistrate.

4-15.c. **(Added)** Authorization for the nonconsensual extraction of blood samples for evidentiary purposes by qualified medical personnel is independent of and not limited by provisions defining medical care, such as the provision for nonconsensual medical care pursuant to AFI 44-102_AFGM2021-01 29 June 20, *Medical Care Management,* para 11.3.

4-16.a. **(Added)** A person subject to tests under paragraph 2.3. can request additional testing. These tests are paid for by the requesting individual, and an approved facility such as an off-base hospital or research laboratory performs the tests. If they desire admissibility of other tests in a military or civilian court of law, they must ensure the state approves the test and test method. Complete all tests as soon as possible, noting any delay on the resulting documents. If someone requests additional testing, the apprehending official may help make those arrangements. However, tests conducted under authority of the UCMJ remain valid when circumstances prevent timely release of the individual, or for whatever reason additional testing is not completed.

4-17.a. **(Added)** On-duty security forces will conduct local off base law enforcement checks for arrests of military personnel. Arrests will be documented in the security forces blotter. 49 SFS/S5AR will review blotters and when an off-base arrest, to include traffic related offenses, are reported; will coordinate with the arresting agency for a copy of the report. The report will be attached to the AFJIS report generated by the on-duty flight that received the notification.

4-17.b. **(Added)** The 49 WG/SJA shall act as a liaison with civil authorities for all civil traffic cases pending on military members.

4-18.c.(3).(c). **(Added)** The individual's unit commander, section commander, or first sergeant is responsible for providing a copy of the person's suspension/revocation memorandum to 49 LRS/Ground Transportation.

4-18.c.(3).(d). **(Added)** 49 SFS/S5AR will notify the State driver's license agency of those personnel whose installation driving privileges are revoked for 1 year or more, following final adjudication of the intoxicated driving offense or for refusing to submit to a lawful BAC test in accordance with AFI 31-218(I), paragraph 2–3. This notification will include the basis for the suspension and the blood alcohol level. The notification will be sent to the State in which the driver's license was issued and a copy of the notification will be placed within the report.

5-1. 49 SFS/S5AR will use AFJIS to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions, and traffic point assessments involving military and DoD civilian personnel. Traffic violation points used in assessments will remain in effect for three (3) years or to the extent of the current record-keeping system capability, whichever is less. Table 5.1. lists suspension/revocation periods for base driving privileges. Not all violations are covered by this instruction. ***Traffic points are subjective to double if a traffic citation is given in a school zone or residential area.***

Table 5.1.a. (Added) Suspension/Revocation of Driving Privileges.

VIOLATION	ASSESSMENT
1. Driving while driver's license or installation driving privileges are under suspension or revocation. See NOTE #2. 1.1. Apprehension/detention/arrest for driving while installation or state driving privileges are suspended or revoked. 1.2. Second apprehension/detention/arrest for DUI in a 5-year period.	2-year revocation is mandatory on determination of facts by Installation Commander or designee.
2. Refusal to submit to or failure to complete chemical tests (Implied Consent). If already under suspension/revocation, the revocation will be added onto the existing base suspension/revocation. See NOTE #2.	1-year revocation is mandatory on determination of facts by Installation Commander or designee.
3. Conviction, non-judicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of a driver's license for intoxicated driving.	1-year revocation is mandatory on conviction or determination of facts by Installation Commander or designee.
4. When a serious incident involving a motor vehicle occurs and the Installation Commander or designee determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline on the installation.	1-year revocation is mandatory on determination of facts by Installation Commander or designee.
5. Manslaughter (or negligent homicide by vehicle) resulting from the operation of a motor vehicle. 5.1. Driving or in physical control of a motor vehicle while under the influence of intoxicating liquor 0.08% or greater. 5.2. Driving a motor vehicle while under the influence of any narcotic or while under the influence of any other drug (including alcohol) to the degree rendered incapable of safe vehicle operation. 5.3. Use of a motor vehicle in the commission of a felony. 5.4. Fleeing the scene of an accident involving death or personal injury (hit and run). 5.5. Perjury or making a false statement or affidavit under oath to responsible officials relating to the ownership or operation of motor vehicles. 5.6. Unauthorized use of a motor vehicle belonging to another, when the act does not amount to a felony.	1-year revocation is mandatory on conviction.
6. Failure to comply with the New Mexico Financial Responsibility Law (i.e. failure to maintain vehicle insurance)	2-week suspension
6.1 Owner's knowingly and willfully permitting an unlicensed person to operate the owner's motor vehicle. 6.2. Using a motor vehicle to transport stolen government or private property. 6.3. Obtaining base registration fraudulently or illegally or allowing one's base registration to be used fraudulently or illegally. 6.4. Use of a vehicle in the commission of an act prohibited by law or regulation.	1-year revocation is mandatory on determination of facts by installation commander.

6.5. Failure to maintain a vehicle in a state of repair meeting the minimum mechanical safety standards stated in NMSA 66-3-801 through 66-3-887 (three citations issued over a 12 month period, minor infractions excluded). 6.6. Providing false information during a traffic accident investigation. 6.7. Striking a sign, fixture, or unattended vehicle without reporting the accident to Security Forces. 6.8. Reckless driving--willful and wanton disregard for the safety of persons or property.	
7. Mental or physical impairment (not including alcohol or other drug use) to the degree rendered incompetent to drive. 7.1. Commission of an offense in another state which, if committed on the installation, would establish grounds for suspension or revocation. 7.2. Permitting an unlawful or fraudulent use of an official driver's license. 7.3. Conviction of fleeing or attempting to elude a police officer. 7.4. Conviction of racing on the highway. 7.5. Excessive parking and other non-moving violations.	Suspension for a period of 6-months or less or revocation for a period not to exceed 1-year is discretionary.
8. Driving while impaired (BAC of 0.05-0.079) (6 points and 6-month suspension). 8.1. Open container violation.	Maximum of 6-months suspension no minimum.
9. Driving a motorcycle without completion of MSF. 9.1. Other proof of Refresher/Sustainment Training. 9.1. Second noncompliance with motorcycle driving privilege requirements within 12 consecutive months (PPE requirements).	Minimum 30-day suspension (maximum 90-day suspension) of all base driving privileges is mandatory on determination of facts by installation commander.
10. Failure of operator or occupants to use available restraint system devices while moving (operator assessed revocation). 10.1. Failure to properly restrain children in a child restraint system while vehicle was in motion (when child is 5 years of age or younger or the weight of the child does not exceed 50 pounds). 10.2. Applies to not using or improper use of a child restraint device, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer). 10.3. Four points will be assessed to the driver when no restraint system of any kind is used.	5-day minimum suspension (30 day maximum) is mandatory on determination of facts by installation commander.
11. Vehicle operators cited or stopped for using a cell phone without a hands-free devise while vehicle is in motion.	2-Day minimum suspension (60 day maximum) is mandatory on determination by facts by Installation Commander.
12. First Offense: Speeding in school zone/housing area 12.1. 1-15 mph over the posted speed limit will be suspended for 5 days and will receive a citation. 12.2. 16+ mph over the posted speed limit will be suspended for 15 days and will receive a citation.	

13. Second Offense: Speeding in school zone/housing area in a 12 month period 13.1. 1-15 mph over the posted speed limit will be suspended for 30 days and will receive a citation. 13.2. 16+ mph over the posted speed limit will be suspended for 60 days and will receive a citation.	
14.1 For a second seatbelt or safety device violation in 12-month period 14.2 For a third violation of speeding in a school zone/housing area in a 12-month period. (See NOTE #1) 14.3 For a third seatbelt violation in 12-month period. (See NOTE #1)	30-day suspension minimum is mandatory on determination of facts by installation commander. **NOTE #1**: An individual who has received a 30-day suspension for speeding or seatbelt citations within a 12-month period for any of the above violations identified, regardless of the violation, shall receive a suspension of base driving privileges not to exceed 12-months as determined by the 49 MSG/CC.
15. For a second cell phone violation in a 12-month period 15.1. For a third cell phone violation in 12-month period.	14-day suspension for second violation and 60-day suspension for third violation.
16. Accumulating 12 traffic points within 12 consecutive months. 16.1 Accumulating 18 traffic points within 24 consecutive months.	Maximum 1-year is mandatory on determination of facts by installation commander.
NOTE #1: The actual period of suspension or revocation imposed will be based on the facts surrounding the particular offense, with consideration given. **NOTE #2**: If an individual is cited or apprehended/detained/arrested for more than one offense and both offenses qualify for a suspension/revocation, the suspension/revocation will run consecutively (2-year suspension for a suspended state licenses and 1-year revocation for DUI, total time of the suspension/revocation would be 3 years). **NOTE #3**: If you are active duty and cited for any moving violation, you will be required to attend the 49th Wing Traffic Safety Course V (5) for all violations requiring a suspension letter. Failure to complete this course will result in an indefinite suspension until completed. 49th Wing Traffic Safety Course V (5) will be conducted by contacting the unit safety representative, who in-turn will contact the 49 WG/SE at 572-3793. Unit commanders and first sergeants are responsible for ensuring compliance with this training program for all of their military members.	

5-2.a. **(Added)** If an individual is operating a motor vehicle owned by another person at the time of a violation, points will be assessed against the violator and not the vehicle owner. When the vehicle owner knowingly or willingly permits an unqualified or unlicensed driver to operate their vehicle, points will be assessed against both the violator and the vehicle owner.

5-4.(b). Upon receipt of a DD Form 1408 or other military law enforcement report of a moving violation, unit commanders may delegate the responsibility for conducting an inquiry to their section commander, first sergeant, or a key staff agency head. Authority will not be delegated to persons below those positions.

5-4.f. 49 SFS/S5AR will forward an advisory letter, on behalf of the 49 SFS/CC, through the unit commander or supervisor, to any person accumulating six traffic points within a six-month period.

5-4.f.(1). **(Added)** The 49 MSG/CC has the prerogative of suspending base driving privileges of personnel who have established unsafe driving records. Such suspensions may be made without regard to point assessment made under the system; however, each case of this type will be handled on an individual basis.

5-4.i. **(Added)** DD Form 1408, *Armed Forces Traffic Ticket* Voiding Procedures. Once a traffic ticket has been issued, normally, only the issuing official may void it. The 49 SFS/CC or his designees 49th Security Forces Squadron Operations Officer/Superintendent (49 SFS/S3O), may void for obvious administrative or legal errors when an inappropriate citation (violation) has been annotated. Also, a citation may be voided when evidence or information is discovered that proves the violator of the citation did not commit the violation. The issuing/voiding official will state in writing on the reverse of the white copy of the form the exact reason for voiding name, rank, date, and signature. The voided form will then be forwarded to 49 SFS/S5AR. *NOTE*: This does not preclude a citation from being reissued for the appropriate offense.

5-5.a. When 49 SFS/S5AR is made aware of personnel changing duty stations, they will forward an Individual History Record to the gaining security forces squadron's S5AR section if the individual's driving privileges have been revoked or suspended, or if the individual has accumulated traffic points.

5-5.g. **(Added)** 49 SFS/S5AR will notify suspended/revoked operator's issuing state of the suspension/revocation.

Table 5.2. (Added) Point Assessment for Moving Violations.

VIOLATION	ASSESSMENT
VEHICLE	
Following too close. The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent. The driver must have due regard for the speed of neighboring vehicles, traffic, and upon the current roadway conditions.	4
Signal before turning. No person shall turn any vehicle without giving an appropriate signal by hand and arm or vehicle signaling device.	3
DRIVER	
Legible License to be carried and exhibited on request. Persons on HAFB shall have legible and valid states driver's license in their immediate possession at all times when operating a motor vehicle and shall display the license upon request by Security Forces. Likewise, any person operating a GOV shall have a legible and valid government driver's license in their immediate possession and shall produce the license upon request by Security Forces.	1
NM Mandatory Financial Responsibility Act. Vehicle must be insured or owner must have evidence of financial responsibility.	1

Failure of operator or occupants to use available restraint system devices while moving (operator assessed points).	2
Failure to properly restrain children in a child restraint system while moving.	2
Fleeing or Attempting to Elude Security Forces. Any person who operates a motor vehicle and willfully fails or refuses to bring the vehicle to a stop, flees, or attempts to elude a pursuing Security Forces vehicle when given a visual or audible signal to bring the vehicle to a stop. A signal under this section that is given by Security Forces member pursuing a vehicle may be by hand, voice, emergency light, or siren. NOTE: The Security Forces member giving the signal must be on-duty. If the Security Forces member is in a vehicle, the vehicle must be appropriately marked as a Security Forces vehicle.	6
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Owner knowingly and willfully permitting a physically impaired person operate the owners motor vehicle.	6
Fleeing the scene (hit and run)-property damage only.	6
Driving vehicle while impaired (blood alcohol content more than .05 percent and less than .08 or lesser amount when assimilating local or state standard).	6
Failure to obey traffic signal or traffic instructions of an enforcement officer or traffic warden; or any official traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
Failure to stop for school bus or school-crossing signals.	4
Failure to yield to Pedestrians. The driver of a vehicle shall yield to any pedestrian entering, or presently crossing a marked crosswalk.	3
Passing Vehicle Stopped for Pedestrian. When any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass the stopped vehicle.	3
Failure to yield the right of way to emergency vehicle. The driver of any vehicle other than on official business shall not follow closer than 500 feet of any fire apparatus responding to an alarm.	4
Using a hand-held electronic device while driving on an installation.	3
Driver involved in accident is deemed responsible (only Added to points for specific offenses).	1
Other moving violations (involving driver behavior only).	3
Failure to Yield (no official sign involved).	4

Improper Turning Movements (no official sign involved).	3
Improper Overtaking.	3
Wearing of headphones, earphones, or earbuds while driving motor vehicles (two or more wheels).	3
Use of Radar Detectors. No person shall operate any type of radar detection device or any type of radar disrupter device to indicate the presence of speed recording instruments or to transmit simulated erroneous speed.	3
Driver Behavior and Inattentive Driving. No person shall drive in an unsafe manner or in a manner that creates an unsafe condition. Some examples of unsafe driver behavior might be eating and drinking, operating radios, CD players, global positioning equipment if its use causes the driver to swerve or lose situational awareness of his/her surroundings, failing to dim headlights to prevent blinding other drivers, road rage, or any inattentive action made by the driver which causes an accident. **Used for incidents not meeting the criteria of reckless driving**.	3
Inattentive Backing. Vehicle operators will ensure the area is clear of vehicles, pedestrians, and obstacles when backing a vehicle from any parking space, parking lot, roadway, or driveway.	3
Improper Passing.	4
Excessively Loud Music. No person shall operate a vehicle with the vehicle's audio system or any other type of audio system in the vehicle at a level where it may be heard at a distance of 15 feet or greater (Patrolman and/or Flight Sergeant makes decision).	3
SPEEDING	
Speed contests.	6
Speed too fast for conditions.	2
Speed too slow for traffic conditions, and/or impeding the flow of traffic, causing potential safety hazard.	2
1 to 10 mph over the posted speed limit.	3
11 but not more than 15 mph over the posted speed limit.	4
16 but not more than 20 mph over the posted speed limit.	5
Over 20 mph of the posted speed limit.	6
Exhibition of Speed/Excessive acceleration.	3
VEHICLE EQUIPMENT	

Operating an Unsafe Vehicle. No person shall drive or move on any road any motor vehicle and/or trailer unless the required equipment is in good working order and the vehicle is in such safe mechanical condition as not to endanger the driver, occupants, or any person upon the road. Violation includes other than minor safety defects or when a driver or registrant fails to correct a minor defect (e.g., a burned out headlight not replaced within the grace period on a warning ticket).	2
Headlights on Motor Vehicles. Every motor vehicle other than a motorcycle or motor driven cycle shall be equipped with at least two and no more than four headlights with at least one on each side of the front of the motor vehicle and white in color.	2
Taillights. Every motor vehicle, trailer, semi-trailer and pole trailer, and any other vehicle which is being drawn shall be equipped with two taillights mounted on the rear which when lighted shall emit a red light plainly visible from 500 feet to the rear and stop lamps visible from 100 feet.	2
License Plate Light. Every motor vehicle shall be equipped with either a taillight or a separate lamp, which will illuminate, with only a white light, the rear number plate and render it clearly legible from a distance of 50 feet to the rear. It shall be wired to activate whenever the headlights are illuminated.	2
MOTORCYCLES & MOPEDS	
Motorcycle PPE. Failure to wear required protective clothing while operating or riding on a motorcycle, MOPED, or a three or four-wheel vehicle powered by a motorcycle-like engine	3
Rider and Passenger to Have Seat. A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto and the operator shall not carry any other person nor shall any other person ride on a motorcycle unless it is designed to carry more than one person.	3
Motorcycle Equipment Required. A motorcycle and motor-driven cycle shall be equipped with a rearview mirror, seat, and footrests for the operator, and at least one white in color headlight. Any motorcycle operated with a passenger shall be equipped with seats and footrests for such passengers.	3
Motorcycle PPE. Failure to wear an approved helmet while operating or riding on a motorcycle, MOPED, or a three or four-wheel vehicle powered by a motorcycle-like engine	3
Lighted Lamps Required. Motorcycles or motor-driven cycles shall display illuminated headlights at all times the vehicle is in motion.	2
Muffler Required. A person shall not operate a motorcycle unless it is equipped with a working muffler or noise reduction equipment. A person shall not use a muffler cut-out, bypass, or similar device.	2

Motorcycle Between Lanes. A person shall not operate a motorcycle between the lanes of traffic or between adjacent rows of vehicles.	3

Table 5.3. **(Added)** Point Assessment for Non-Moving Violations.

VIOLATION	**ASSESSMENT**
PARKING	
Improper Parking. See NOTE #3	2
Illegally parked in designated handicap area (no decal, license or placard displayed).	3
Misuse of handicap decal. See NOTE #2.	3
Unattended Vehicle (while running).	3
MISCELLANEOUS	
Unattended children left in vehicle. Animals are included if a danger exists to the animal. See NOTE #4 and para IAW HAFB Youth Supervision Guidelines.	6
Improper Registration (fraudulent tags).	4
Improper Registration (expired or unregistered).	2
Failure to provide proof of current insurance when requested by patrolman Note: Electronic proof of insurance via digital device (i.e., cellphone link to insurance company proof of insurance) is authorized	1
Abandoned Vehicle.	3

NOTES:
1. When two or more violations are committed on a single occasion, points may be assessed for each violation.
2. When a vehicle has a handicap decal displayed, but the occupant is not the decal or placard registrant and is not dropping off or picking up the handicapped registrant. Also includes parking in an area designated for "Van" access only, and handicap registrant has parked another vehicle class instead.
3. When designated in local parking plan (i.e., double parked, parked in reserved parking, against the flow of traffic and those areas designated for emergency vehicles).
4. An AFJIS report will also be accomplished. Revocation of driving privileges for one year will be considered by the commander. Example: If children or animals were left in dangerous conditions in vehicle, i.e., in hot weather where interior temperatures may reach dangerous levels, keys left accessible to children or where conditions are deemed hazardous by a reasonable person.
5. Emergency vehicles are authorized to park in any area deemed necessary to affect a response.

JUSTIN B. SPEARS, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 10, *US Code, Armed Forces,* **New Mexico Criminal Law and Motor Vehicle Handbook, Chapter 66 NMSA 1978, the "Motor Vehicle Code"**

DoDD 5525.4, *Enforcement of the State Traffic Laws on DoD Installations,* 2 November 1981, incorporating Change 3, 30 September 2020

DoDI 6055.4, *DoD Motor Vehicle and Traffic Safety,* 27 August 2021

Army Regulation 190-5, *Motor Vehicle Traffic Supervision, 14 July 2017*

AFI 13-213, HOLLOMANAFBSUP, *Airfield Driving*, 12 July 2012

AFPD 31-1, *Integrated Defense*, 21 June 2018

DoDM 5200.08 Vol 3_AFMAN 31-101, Vol 3, *Installation Perimeter Access Control (CUI)*,

27 February 2020, GM 16 May 2022

AFI 31-115, *Law and Order Operations,* 18 August 2020, GM 7 December 2022

AFI 31-118, *Security Forces Standards and Procedures*, 18 August 2020, GM 14 November 2022

AFI 31-218(I), *Motor Vehicle Traffic Supervision*, 14 July 2017

AFI 33-332, *Air Force Privacy and Civil Liberties Program*, 10 March 2020

AFI 44-102, *Medical Care Management*, 22 April 2020, GM 13 July 2022

DAFI 51-508, *Political Activities, Free Speech And Freedom Of Assembly Of Air Force Personnel,* 23 March 2023

AFI 91-207, *The U.S. Air Force Traffic Safety Program*, 27 July 2019

AFMAN 32-1017, *DoD Transportation Engineering Program*, 17 November 2003

AFI 33-322, *Records Management and Information Governance Program,* 23 March 2020, Change 1 28 July 2021

Manual on Uniform Traffic Control Devices for Streets and Highways

https://mutcd.fhwa.dot.gov/kno_2009r1r2.htm

Prescribed Forms

None

Adopted Forms

AF Form 332, *Base Civil Engineer Work Request*

AF Form 483, *Certificate of Competency*

AF Form 847, *Recommendation for Change of Publication*

AF Form 1168, *Statement of Suspect/Witness/Complaint*

AF Form 1176, *Authority to Search and Seize*

AF Form 1315, *Accident Report*

AF Form 1364, *Consent for Search and Seizure*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF Form 3545, *Incident Report*

DD Form 518, *Accident Identification Card*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Incident Report*

DD Form 2220, *Department of Defense Registered Vehicle*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

DD Form 2817, *Evidence/Property Custody Document*

Standard Form 91, *Motor Vehicle Accident Report*

United States District Court Violation Notice

Abbreviations and Acronyms

49 CES--49th Civil Engineer Squadron

49 CES/CECP--49th Civil Engineer Squadron Contract Programming

49 CES/CC--49th Civil Engineer Squadron Commander

49 CES/CEOE--49th Civil Engineer Squadron Pavement Engineer

49 FSS--49th Force Support Squadron

49 FSS/FSCO--49th Force Support Squadron Outdoor Recreation

49 LRS--49th Logistics Readiness Squadron

49 LRS/LGRDDO--49th Logistics Readiness Squadron Ground Transportation

49 MDG--49th Medical Group

49 MSG/CC--49th Mission Support Group Commander

49 SFS--49th Security Forces Squadron

49 SFS/CC--49th Security Forces Squadron Commander

49 SFS/S3O--49th Security Forces Squadron Operations Support

49 SFS/S3O--49th Security Forces Squadron Operations Officer/Superintendent

49 SFS/S3T--49th Security Forces Squadron Training

49 SFS/S5AR--49th Security Forces Squadron Reports and Analysis

49 WG--49th Wing

49 WG/CC--49th Wing Commander

49 WG/SJA--49th Wing Staff Judge Advocate

49 WG/SE--49th Wing Safety

ADAPT--Alcohol and Drug Abuse Prevention and Treatment

AFI--Air Force Instruction

AFMAN--Air Force Manual

ANSI--American National Standards Institute

AFJIS – Air Force Judicial Information System

AFOSI--Air Force Office of Special Investigations

AFRIMS--Air Force Records Information Management System

ATV--All-Terrain Vehicle

BAC--Blood Alcohol Content

BAT--Blood Alcohol Tests

BDOC--Base Defense Operations Center

BrAC--Breath Alcohol Content

BTSCG--Base Traffic Safety Coordination Group

CE--Installation Civil Engineer

CFR--Code of Federal Regulation

CVB--Central Violations Bureau

DBIDS--Defense Biometric Identification System

DFC--Defense Forces Commander

DoD--Department of Defense

DoDI--Department of Defense Instruction

DRMO--Defense Reutilization and Marketing Office

DUI--Driving Under the Influence

FAMCAMP--Family Camping Area

FPCON--Force Protection Condition

GOV--Government Owned Vehicle

HAFB--Holloman Air Force Base

IAW--In Accordance With

MSF--Motorcycle Safety Foundation

MSFT--Motorcycle Safety Foundation Training

MTMC-TEA--Military Traffic Management Command Transportation Engineering Agency

NAFI--Nonappropriated Fund Instrumentality

NCOIC--Non-Commissioned Officer in Charge

NHSPS--National Highway Safety Program Standards

NHTSA--National Highway Traffic Safety Association

NM--New Mexico

OGMVC--Other Government Motor Vehicle Conveyances

OPR--Office of Primary Responsibility

PAS--Privacy Act Statement

PCS--Permanent Change of Station

POV--Privately Owned Vehicle

RA--Reports and Analysis

RDS--Records Disposition Schedule

RM--Risk Management

ROI--Report of Investigation

RV--Recreational Vehicle

TDY--Temporary Duty

UCMJ--Uniform Code of Military Justice

UNECE--United Nations Economic Commission for Europe

USC--United States Code

Terms

Explanation of Terms--Unless the context indicates otherwise, the following words and phrases when used in this instruction shall have the meanings respectively ascribed to them in this chapter. The base populace will be notified of interim changes to this instruction by articles in the base bulletin or the base newspaper. References (in parentheses) at the end of each paragraph or sentence, if any, will refer to the equivalent New Mexico Criminal Law and Motor Vehicle code.

All-Terrain Vehicles (ATVs)--Motorized vehicle with 3 or more wheels, low-pressure tires, a wheel base of 50 inches or less, an overall weight of 600 pounds or less, and a seat to be straddled by the operator.

Authorized Emergency Vehicle--"Authorized emergency vehicle" means vehicles of the fire department, police vehicles (to include; Security Forces and other federal and civil law enforcement), ambulances, base command leadership (Wing, Group, and Unit CCs), Air Force Office of Special Investigations (AFOSI), alert force vehicles and disaster response vehicles.

Bicycle--Every device propelled by human power upon which any person may ride, having two tandem wheels, is a "bicycle".

Crosswalk--A "crosswalk" is that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs or in the absence of curbs from the edges of the traversable roadway; or any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Driver--Any person who drives or is in actual physical control of a motor vehicle is considered a driver. A person is considered to be in actual physical control when in a position to control the vehicle, whether to regulate or restrain its operation or movement. The term driver is used interchangeably with the word operator.

Driveway--Every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons is a “private road” or “driveway”.

Family Housing Area--All roadways within the boundaries of housing are designated as HAFB housing areas.

Fire Lane--That area adjacent to any building extending 49 feet from the building in any direction, excluding designated parking areas, or any area marked or posted as a fire lane.

Implied Consent--This applies to any person granted the privilege of operating a motor vehicle on a military installation. Such persons shall be deemed to have given consent to a chemical test of their blood, breath or urine for the purpose of determining the alcohol/drug content in the individual, if cited or lawfully stopped for any offense arising out of acts alleged to have been committed while driving under the influence of intoxicating substances.

Intersection--An "intersection" is the area embraced within the prolongation or connection of the lateral curb lines or, if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles or the area within which vehicles traveling upon different highways joining at any other angle may come in contact.

License to Operate a Motor Vehicle--Any operator's or chauffeur‘s license or any other license or permit to operation of a motor vehicle, issued under the laws or instructions of any state or the Federal Government of the United States, including any temporary license or instruction permit.

Maintained/Public Roadways--Highways, streets, roads, parking lots, etc. whether improved or unimproved, which are maintained at government expense.

Moped--Notwithstanding the provisions of Section 56-5-160, every cycle with pedals to permit propulsion by human power or without pedals and with a motor of not more than fifty cubic centimeters which produces not to exceed two brake horsepower and which is not capable of propelling the vehicle at a speed in excess of thirty miles an hour on level ground is a moped. If an internal combustion engine is used, the moped must have a power drive system that functions directly or automatically without clutching or shifting by the operator after the drive system is engaged.

Motor Vehicle--“Motor vehicle” means every vehicle which is self-propelled, except mopeds, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Motor Vehicle Accident--Any incident which involves a moving vehicle and results in property damage, death or injury to persons.

Moving violation--A violation of any traffic law, ordinance, or regulation while operating a vehicle. Moving violations typically involve one or both of the following:

a, *Unsafe act.* An Act or omission in traffic that is hazardous.

b. *Unsafe condition.* Causing or permitting an illegal and possibly hazardous condition of –

(1) Highways, roads, or streets used by traffic.

(2) Vehicles used in traffic.

(3) A pedestrian or driver in traffic.

Non-Moving Violation--Any violation that does not directly involve the behavior of the driver, such as parking violation, expired registration, no insurance, etc.

Official Traffic Control Devices--All signs, signals, markings and devices, placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic are “official traffic-control devices”.

Official Traffic Controller--An individual whose official duties include controlling traffic (i.e. Security Forces, civil engineering road and ground crews, cordon guards, etc.).

On Base--All land areas, including streets, buildings, housing and dormitories constituting Holloman Air Force Base.

Operator--“Operator” means every person who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.

Park--To “park”, when prohibited, means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

Police or Peace Officer--Security Forces, AFOSI, federal and civil law enforcement personnel authorized to direct or make apprehensions for violations of traffic instructions.

Remedial Driver’s Training Program--This program is intended to educate personnel on the dangers of speeding in a school zone and provide first-hand experience on what our children and crossing guards experience on a daily basis. As such, the Remedial Driver’s Training Program will consist of two phases. Phase One consists of classroom training conducted by the 49th Wing Safety office and can be scheduled by calling 49th Wing Safety at 572-3793. Phase Two consists of four periods (morning and afternoon constitute two periods) of crossing guard duties for the Holloman Air Force Base school crossing. Both phases must be completed within 30 days of the offense being confirmed. Failure to complete the 49th Wing Remedial Driver’s Training Program within the allotted 30 days will result in further suspension of driving privileges.

Rental Agreement--"Rental agreement" means a written agreement setting forth the terms and conditions governing the use of a private passenger automobile or rental vehicle provided by a rental company.

Revocation--“Revocation” means the termination by formal action of a person's driving privileges to operate a motor vehicle on the public highways for a minimum of one year up to two years.

Right of Way--“Right-of-way” is the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Safety Zone--A “safety zone” is an area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

Special Purpose Recreational Vehicles--Special Purpose Recreational Vehicles are **c**amping trailers (all types), utility trailers (all types), boat trailer (with or without boats), and pickup trucks (all sizes, with camper units mounted on the vehicle's cargo compartment, when the camper unit extends beyond the width of the carrying vehicle and the length of the cargo bed).

Stop--The complete cessation of movement, normally marked by a shift of weight rearward following a stop from forward motion.

Suspension--“Suspension” means the temporary withdrawal by formal action of a person’s driving privileges to operate a motor vehicle on the public highways and can be enforced for any amount of time.

ATTACHMENT 2 (Added)

The HAFB Installation Traffic Code

A2.1. In accordance with Air Force, DoD and NM policy, this code regulates the movement of all vehicles, all pedestrians, and other traffic throughout HAFB. This is a punitive regulation, and except as otherwise specified, persons subject to the UCMJ who violate any portion of the Traffic Code may be punished under the provisions of Article 92, UCMJ or other types of disciplinary or administrative actions deemed necessary by the unit commander for violations of the provisions of this or any other instruction, directive, or law pertaining to traffic. Persons not subject to the UCMJ are subject to trial before a United States Magistrate and/or administrative sanctions deemed necessary by the Installation Commander or designated representative for violations of this or any other instruction, directive, or law pertaining to traffic. State of New Mexico Vehicle Code is assimilated for use on HAFB IAW Title 18, USC 13, DoDD 5525.4, and AFI 31-218(I). Air Force personnel engaged in law enforcement and adjudication activities will follow the provisions of AFI 31-218 in reporting all criminal and traffic violations, and utilize the AFJIS to support reporting requirements and procedures. For the purpose of this directive, the term HAFB is equally applicable to all areas under the jurisdiction and control of HAFB including all housing areas.

A2.2. Enforcement of Traffic Code.

A2.2.1. The DFC is responsible for enforcement of all traffic laws and instructions including applicable state, county, and city traffic laws on HAFB.

A2.2.2. Security Forces may issue a DD Form 1408, or CVB Violation Notice or any other applicable traffic offense.

A2.2.3. Refer to paragraph 9 of this instruction for further guidance on issuance of the DD Form 1408 and CVB Violation Notice.

A2.2.4. For offenses not listed in this instruction, citations may be issued and assessed points in accordance with NM state law.

A2.2.5. Traffic points are subjective to double if a traffic citation is given in a school zone or residential area.

A2.3. Authorized Emergency Vehicles.

A2.3.1. The following are designated as emergency vehicles:

A2.3.1.1. Ambulances.

A2.3.1.2. Command Vehicles.

A2.3.1.3. Crash Response Vehicles.

A2.3.1.4. Disaster Preparedness Vehicle.

A2.3.1.5. Explosive Ordinance Vehicles.

A2.3.1.6. Fire Equipment.

A2.3.1.7. Security Forces and Military Police Vehicles.

A2.3.1.8. Air Force Office of Special Investigation Vehicles.

A2.3.1.9. Alert Vehicles during Alert Force Launch.

A2.3.1.10. Federal, State, and City Emergency Vehicles.

A2.3.2. **Emergency Vehicle Operator Rules.** In emergency cases, such as emergency calls, fire response, and law enforcement pursuits, emergency vehicle drivers must adhere to the following guidance:

A2.3.2.1. Drivers of emergency vehicles will obey all traffic laws, however, in an emergency they may:

A2.3.2.1.1. Park or stand emergency vehicles irrespective of the provisions of this traffic code, provided they do not intentionally block traffic or create a traffic hazard, unless circumstances dictate otherwise.

A2.3.2.1.2. Park the vehicle with the engine running as long as the operator takes all safety precautions (that is, ensures the vehicle is placed in park, the hand brake is engaged, and if on an up/downgrade, the front wheels are turned into the curb or side of the roadway).

A2.3.2.1.3. Proceed through a stop sign/signal only after slowing to ensure safe operation and the right-of-way has been granted by all other drivers.

A2.3.2.1.4. Exceed the posted speed limit by not more than 10 miles per hour, exercising due regard for life and property. ***NOTE:*** Security Forces units pursuing known felons are not so restricted and may exceed the posted speed limit exercising due regard for life and property. Terminate sirens and lights once the suspect vehicle departs base property. However, Security Forces may still follow the suspect vehicle during a--Fresh Pursuit without emergency devices operating until civil authorities intercept, as directed by the on-duty Flight Sergeant, and with final approval of the DFC.

A2.3.2.1.5. Make unauthorized turns or change direction of movement provided the vehicle is under control and does not endanger life and property.

A2.3.2.2. In emergency situations requiring any of those actions indicated above, the driver must sound an audible signal (siren or horn) or display emergency lights as appropriate.

A2.3.2.3. The operator of an emergency vehicle will not assume the right-of-way based solely on the fact that the emergency equipment (flashing light/siren) is in operation.

A2.3.2.4. This code directive will not protect drivers of emergency vehicles from the consequences of recklessness or wanton disregard for the safety of others.

A2.3.2.5. No vehicle, other than those authorized as an emergency vehicle, may not be equipped with nor may any person use on a vehicle any siren, whistle, or bell. ***EXCEPTION:*** Volunteer firefighters may equip their vehicles with emergency lights and siren; however, they will not operate their emergency lights and sirens on the installation and may not exceed the posted speed limits or fail to comply with the Rules of the Road under any circumstances. (***NOTE:*** Additional information regarding the Air Force Emergency Management and Traffic Services can be found in AFPD 31-1, *Integrated Defense* and AFMAN 31-201 Volume 3, *Flight Operations*).

A2.3.2.6. Approach of Emergency Vehicles. At the approach of an emergency vehicle with emergency lights or siren activated from any direction, vehicle operators will yield the right-of-way by driving to the extreme right-hand side of the roadway, clear of any intersections, and

stopping their vehicles. The vehicle operator may proceed after the emergency vehicle has passed.

A2.4. Speed Limits. A person operating any vehicle on HAFB will do so in a careful and prudent manner, and at a rate of speed no greater than is reasonable and prudent under the conditions at the point of operation, taking into account the amount of traffic, road and present weather conditions.

A2.4.1. The limits specified in this paragraph will be the maximum allowable speeds, except for emergency vehicles responding to an emergency, or when hazards dictate lower speeds. The operators of motor vehicles are subject to speed checks by Security Forces using radar or other approved speed measuring devices/methods. Speed limits are as follows:

A2.4.1.1. No person shall drive at a speed greater than the posted speed limit. The standard speed limit within the confines of HAFB is 30 mph, unless otherwise posted.

A2.4.1.2. The maximum speed limit will not exceed 5 mph in the following areas: parking lots or parking areas, ammunition areas, service roads, or alleyways.

A2.4.1.3. The maximum speed limit in the residential housing areas and the Family Camp Ground will not exceed 15 mph, unless otherwise posted.

A2.4.1.4. School speed zones during posted hours of operation (unless posted otherwise), 15 mph.

A2.4.1.5. The maximum speed limit will not exceed 15 mph on the Ramp (Flight line) area.

A2.4.2. Minimum Speed Rule. Operation of a vehicle within the confines of HAFB at such a slow speed as to impede or block the normal and reasonable movement of traffic is prohibited, except when a reduced speed is necessary for safe operation. If road conditions are hazardous as a result of inclement weather or construction, persons driving will need to reduce their speed accordingly and will not be cited for hindering traffic. A slow moving vehicle, including passenger vehicles, that has four or more vehicles formed in a line behind it will turn off the roadway at the next available exit and permit the vehicles following to proceed.

A2.4.3. Special speed limitations entering/departing through base entry points are as follows:

A2.4.3.1. The speed limit at the Main Gate, West Gate, and La Luz Gate is 10 mph entering the installation.

A2.4.3.2. The speed limit at the Main Gate, West Gate, and La Luz Gate is 15 mph when departing the installation.

A2.4.3.3. The speed limit for inbound traffic at the Contractor Gate/Commercial Vehicle Search Area is 5 mph.

A2.4.4. Improper Start or Acceleration. No person will cause a vehicle to be placed into motion or accelerated while in motion in a manner as to cause the drive wheels to break traction with the road surface.

A2.4.5. Following Too Close. Vehicle operators will not follow closer than is reasonable and prudent, except when passing, paying due regard to the speed of the vehicle and traffic conditions. Drivers must maintain a distance of at least 100 feet when following special purpose

maintenance vehicles (e.g., street sweepers, riding mowers, etc.) and/or emergency vehicles in actual response.

A2.5. Pedestrian Limitations and Other Right-of-Ways.

A2.5.1. Pedestrians will obey the instructions of any official traffic control device, specifically applicable to pedestrians, and are subject to the following limitations and restrictions:

A2.5.1.1. Pedestrians will not suddenly enter a street, crosswalk, or other area, with any action which would not allow a vehicle operator to safely and properly stop or yield. Vehicle operators are to yield the right-of-way to pedestrians in crosswalks. Pedestrians should show intention to use a crosswalk and must ensure drivers have shown an intention to permit them to proceed.

A2.5.1.2. Pedestrians will walk, run, or jog on the sidewalk/path, when provided. When no sidewalk or path is present, pedestrians will walk, run, or jog on the furthest outside shoulder on the left side of the roadway, facing oncoming traffic. It is mandatory that pedestrians wear reflective clothing (i.e., reflective vest, belt, arm band, and so forth) during periods of darkness and/or reduced visibility. Jogging gear with reflective characteristics built-in is acceptable.

A2.5.1.3. Crosswalk lights located on First Street adjacent to the schools require vehicle operators to stop at steady lights. Once the red begins to blink, the operator has to ensure no pedestrians are within any area of the crosswalk and then operator may proceed. If coming upon the red light while it is blinking, the vehicle operator will stop, ensure no pedestrians in the crosswalk and then proceed.

A2.6. Off-Street Vehicle Operation. Vehicles will not be operated off maintained roadways on HAFB except as specifically outlined in Paragraph A2.43.1.

A2.6.1. Vehicles may be permitted off-road when it is necessary for loading/unloading of heavy cargo or equipment, provided such operation can be performed safely, without damage to seeded areas or other property, or when directed by an official traffic controller.

A2.6.2. Except for maintenance or emergency vehicles, no motorized vehicles are authorized on any seeded or sodden area, or any area designated for recreation activities, such as football, soccer and softball fields, and the base running track.

A2.7. Unsafe or Defective Vehicles. Persons will not drive nor will a registered owner knowingly allow any unsafe or defective vehicle to be driven anywhere on HAFB.

A2.7.1. Corrective Action. Military members will complete corrective actions within three working days from the date of the violation and either show proof of the correction to their commander or first sergeant or remove the vehicle from the installation. Civilian violators will report to 49 SFS/S5AR to show proof of the correction within three working days from the date of the violation.

A2.7.2. Minimum Action for Corrected Violations. The violator's commander or section commander will verify the repair and notify the 49 SFS/S5AR the corrected action taken.

A2.8. Unattended Vehicles.

A2.8.1. No person will leave a vehicle unattended without first stopping the engine, locking the ignition, and removing the key. This does not apply for flight line Ground Transportation.

A2.8.2. Operators are responsible for safety and security of vehicles. Vehicle operators are prohibited from leaving a vehicle running while entering a facility to conduct business (e.g., stopping at the commissary or Exchange to shop or drop off mail in the post office).

A2.8.2.1. "Remote Start" is authorized in base housing and installation parking lots if there are no children or pets in the vehicle.

A2.8.3. Vehicles will not be left unattended on jacks, regardless of the time element involved. Vehicles that must have wheels removed for repair or vehicle maintenance will be lowered onto jack stands and other wheels chocked when unattended.

A2.9. Unsafe Operation of Vehicle.

A2.9.1. Quantity of Passengers. No person will drive a vehicle with more passengers in the front or back seat than the vehicle is designed for or when the vehicle is loaded so as to obstruct the driver's capability to control the vehicle. This includes operating a motor vehicle with a person riding on an exterior portion of the vehicle or inside the bed of a truck, unless the person(s) is/are seated on the bed or platform of the vehicle or upon a seat built below the level of the sideboards with all body extremities inside the bed.

A2.9.1.1. If Government owned trucks are used to transport personnel in the back, all personnel must sit on the floor of the truck bed keeping all limbs and/or body parts inside the vehicle at all times while in motion. Personnel must not lean against the tailgate of the vehicle or sit on the wheel wells. It is the driver's responsibility to ensure all occupants are in compliance.

A2.9.1.2. Children Riding in Open Backs of Pickup Trucks. It is unlawful to transport a person under 15 years of age in the open bed or open cargo area (no permanent overhead restraining construction) of a pickup truck or trailer, unless at least one of the following conditions are met:

A2.9.1.2.1. An adult is present in the bed or cargo area and is supervising the child.

A2.9.1.2.2. The child is secured or restrained by a seatbelt manufactured in compliance with federal safety standards and installed to support a load of not less than 5,000 pounds.

A2.9.1.2.3. An emergency situation exists.

A2.9.2. Any motor vehicle carrying a payload which hinders the steering, braking, or stability of a vehicle may not be operated.

A2.9.3. All vehicles must be maintained in a mechanically safe condition. Vehicles found to be unsafe will not be operated. Vehicles must have fenders, mud flaps, or other anti-spray devices to prevent the vehicle from being a hazard to other vehicles.

A2.9.3.1. The operator will be cited for the offense and have 72 hours to fix the condition. If proof of correction is provided to the Security Forces desk, the citation may be voided and forwarded to 49 SFS/S5AR.

A2.10. Littering from a Vehicle.

A2.10.1. No person shall throw, place, or drop litter from a vehicle on HAFB. The driver of the vehicle, or the responsible person, may be cited for any litter thrown, placed, or dropped from the vehicle. "Litter" means rubbish, refuse, waste material, garbage, trash, or debris of any kind or description, whether or not it is of value, and includes (but is not limited to) improperly discarded paper, metal, plastic, glass, cigarette butts, or solid waste.

A2.10.1.1. No vehicle which transports litter may be driven or moved on any HAFB roadways unless the litter is secured by means of a covering which is fastened securely so as to prevent any of its load; from dropping, sifting, leaking, or otherwise escaping from the vehicle.

A2.10.2. Military personnel cited for littering from a vehicle will be cited via DD Form 1408.

A2.10.3. Civilian personnel will be cited via CVB Violation Notice.

A2.11. Prohibited Use of Driver's License or Registration. It is unlawful for any person to:

A2.11.1. Display or cause to be displayed or have in possession any canceled, revoked, suspended, fictitious, or fraudulently altered registration or base decal, temporary permit, or flight line decal.

A2.11.2. Lend their registration and/or temporary pass to any other person or knowingly permit the use thereof by any person, or upon any other vehicle than that which it is intended.

A2.11.3. Display or cause or permit to be displayed or have in possession any canceled, revoked, suspended, fictitious, or fraudulently altered driver's license or operator's permit.

A2.11.4. Lend or knowingly permit the use of their driver's license or permit by any other person.

A2.12. Special Restrictions on Particular Licenses. The Air Force, on issuing an AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card,* may, whenever good cause appears, impose restrictions suitable to the licensee's driving ability with respect to the type of/or special mechanical control devices required on a motor vehicle which the licensee may drive, or any other restrictions applicable to the licensee as the Air Force may determine. When it appears from the records of the Air Force that the licensee has failed or refused to comply with restrictions imposed on licensee's driving of a motor vehicle, the Air Force may, after written notice to the licensee indicated in the records of the Air Force, suspend the person's AF Form 2293, and the suspension shall remain in effect until in compliance with this section.

A2.13. Crossing Fire Hose. Vehicles will not be driven over an unprotected fire hose laid down on any roadway during an emergency response, unless directed to cross by Security Forces or fire department personnel.

A2.14. Driving in Prohibited Areas. Vehicles will not be driven on any grass or seeded area. Additionally, vehicles will not be driven through an area which is posted, marked, or barricaded by means of barriers, traffic cones, or signs, or as directed by persons detailed as traffic control monitors, Security Forces or emergency response personnel.

A2.15. Limitations on Backing. The driver of a vehicle will not back the vehicle unless such movement can be made with reasonable safety and without interfering with other traffic. The driver of a backing vehicle will yield the right-of-way to oncoming vehicles including other backing vehicles. When backing vehicles with limited vision to the rear, a spotter will be used. If no spotter is available, the operator, prior to backing, will visually check the area in which the vehicle will be backed. Government motor vehicle operators will sound the horn before backing.

A2.16. Obedience to Traffic Enforcement Officials or Those Persons Designated.

A2.16.1. No person will willfully fail or refuse to comply with any lawful order or direction of any law enforcement officials or persons directed by Security Forces to control traffic.

A2.16.2. Any person operating a motor vehicle on HAFB will immediately and safely move the vehicle to the right side of the roadway or parking area and come to a complete stop when directed to do so by Security Forces members or others performing official duties in support of Security Forces. This includes other emergency vehicles as described in this instruction.

A2.17. Wearing a Device that Affects Hearing. No person may drive, walk, jog, ride a bicycle, or coaster-wheeled conveyance, on streets or roadways (designed for vehicle traffic) while wearing any device or instrument which substantially impairs his/her hearing. This includes, but is not limited to, the use of headsets, earbuds, earphones and other listening devices containing or connected to any source of sound. Motorcycle helmet intercoms are excluded. **NOTE:** One ear piece, one earbud, single earphone, single headphone or single headset is not allowed.

A2.18. Noise and Music Emanating from Vehicles.

A2.18.1. No person will operate a vehicle emitting excessive sound, whether mechanical or stereo. Excessive sound is defined as that sound which will cause a normal person to shout or significantly raise the tone of voice to effectively communicate.

A2.18.2. Radio Volume. Personnel operating motor vehicles on HAFB will maintain vehicle stereo and radio equipment at a low enough volume to ensure the capability of hearing traffic warning signals, horns, alarms, sirens, etc. to aid in the avoidance of motor vehicle accidents, to avoid disturbing the general public, or creating sound pollution.

A2.18.2.1. Music, vibrations, or other sounds emanating from a vehicle with open and closed windows is too loud and will be considered excessive if they can be heard 15 feet or more from the vehicle.

A2.19. Headlight Use Requirements.

A2.19.1. High Beams. During the hours of darkness when within 500 feet of an approaching vehicle from the front or within 200 feet of approaching a vehicle from the rear, headlights will be lowered from high to low beams.

A2.19.2. Dim Lights at Gate. Headlights will be switched from low beams to parking lights when vehicles enter base entry points. Parking lights will be switched back to low beams immediately once the vehicle has passed the gate. No motor vehicle operator shall approach the security gates or installation entry points with both parking lights and headlights turned completely off. ***EXCEPTION:*** Vehicles equipped with daytime running lights.

A2.19.3. Reduced Visibility. During daylight hours when there are periods of reduced visibility (less than 100 yards) due to weather conditions (e.g., dusk, dawn, rain, fog, etc.), to include when windshield wipers are activated, vehicles will be operated with the headlights on.

A2.19.4. When a vehicle is parked off the main traveled portion of the roadway or a street where parking is not common or is prohibited, the driver will turn on parking lights or emergency flashers.

A2.20. Eluding an Enforcement Official. Any driver of a motor vehicle who willfully fails or refuses to bring his/her vehicle to a stop or who otherwise flees or attempts to elude a pursuing police vehicle will be ticketed for eluding an enforcement official. The signal given by the enforcement official may be by hand, voice, whistle, emergency light, or siren.

A2.21. Eluding Traffic Control Devices.

A2.21.1. It is unlawful for any person to drive through parking lots or other areas to elude specific traffic control devices to include signals, signs, lights, stations, and persons controlling traffic.

A2.21.2. Unless operating an emergency vehicle during an emergency response, all vehicle operators will obey all traffic control devices including traffic lights, stop signs, regulatory signs, road markings (traffic cones, lines, barricades, tape, etc.), Security Forces, and traffic control personnel.

A2.22. Driving with Obstructed Vision, Safety/Warning Lights. No person shall operate a vehicle without first clearing all windows, front, side, and rear of all obstructions. Operators will also clear obstructions, snow, ice, and dirt from all headlights, safety lamps, warning lights, license plates, and DoD vehicle decals. Snow accumulation over 1 inch will be removed from hood, roof, and trunk areas prior to operation. Non-cargo vehicles will not be loaded as to restrict visibility in the rear. Tinted license plate covers may not be used on HAFB.

A2.23. Safety Belts/Child Restraints.

A2.23.1. All operators, military and civilian, of private and government motor vehicles, excluding motor driven cycles and buses, must have vehicles equipped with seat belts and, if originally equipped, shoulder harnesses. Seatbelts will be properly fastened at all times while the vehicle is in motion. The operator of the vehicle is responsible for ensuring that all passengers within motor vehicles have seat belts properly fastened at all times. Entry onto the installation may be denied to any person refusing to properly fasten their seat belt. Any person within a government vehicle will have seat belts fastened at all times, on or off base. Seat belts must be worn properly and in a manner consistent with their original design. ***EXCEPTION:*** Wearing seat belts is not required for certain privately owned vehicles manufactured prior to 1966. Note that POVs manufactured after 1966, and were equipped with seat belts as original equipment, must be so equipped when they are operated on HAFB.

A2.23.2. Safety Checks/Traffic Stops. Security Forces and Wing Safety personnel are authorized to conduct traffic stops and safety checks for the sole purpose of checking all vehicle occupants for compliance with the seat belt and child restraint policy. Only one person may use any single seat belt or child restraining device at a time. ***NOTE:*** Repeated infractions may result in suspension of driving privileges on installation.

A2.23.3. New Mexico's child passenger restraint law (N.M. Stat. Ann. 66-7-369) requires that:

A2.23.3.1. Children less than 1 year of age shall be secured in a rear-facing child passenger restraint device that meets federal standards, in the rear seat of a vehicle that is equipped with a rear seat. If the vehicle is not equipped with a rear seat, the child may ride in the front seat of the vehicle if the passenger side air bag is deactivated.

A2.23.3.2. Children 1 year of age through 4 years of age, regardless of weight, or children who weigh less than forty pounds, regardless of age, shall be properly secured in a child passenger restraint device that meets federal standards.

A2.23.3.3. Children 5 years of age through 6 years of age, regardless of weight, or children who weigh less than sixty pounds, regardless of age, shall be properly secured in either a child booster seat or an appropriate child passenger restraint device that meets federal standards.

A2.23.3.4. Children 7 years of age through 12 years of age shall be properly secured in a child passenger restraint device or by a seat belt. A child is properly secured in an adult seat belt when the lap belt properly fits across the child's thighs and hips and not the abdomen. The shoulder strap shall cross the center of the child's chest and not the neck, allowing the child to sit all the way back against the vehicle seat with knees bent over the seat edge.

A2.24. Controlled Access Roads. Access roads leading to controlled access areas. These roads are for official use only.

A2.25. Stopping when Exiting from Alleys, Buildings, Parking Areas, or Secondary Roads. The driver of a vehicle emerging from an alley, building, parking area, or secondary road will stop immediately prior to exiting and will yield right-of-way to pedestrians and other vehicles.

A2.26. Shortcuts. Operators of motor vehicles will not drive through parking areas, unimproved areas, or on the shoulder of any road for the purpose of a shortcut to another area or to avoid the normal flow of traffic or a traffic control device. Vehicle operators will not drive through Soaring Heights Communities/Base Housing unless they reside in base housing, are visiting a resident, or conducting official business at an office located in the area of base housing (i.e., Soaring Heights Welcome Center, etc.).

A2.27. Turning Movements and Signals. The standard arm signals will be used if mechanical devices are not available or operational on the vehicle.

A2.28. Passing.

A2.28.1. Passing a Convoy. No driver of a vehicle may attempt to pass, drive between, or position a vehicle between a convoy transporting explosives, displaying "Convoy Do Not Pass" signs, a police escorted convoy, or other authorized procession traveling in the same direction, unless directed to do so by a member of the escort procession. This restriction does not apply to emergency vehicles during an emergency response.

A2.28.2. Passing Special Purpose Maintenance Vehicles. Personnel desiring to pass special purpose maintenance vehicles must sound horn and receive clearance to pass from the operator of the vehicle, unless having clear view ahead.

A2.29. Child or Animal Interference. No vehicle may be operated while the driver is holding a child or animal, or while allowing a child or animal to interfere in any way with operation of a vehicle.

A2.30. Approaching School Bus. Drivers of vehicles approaching a stopped school bus, from any direction, with red lights flashing or stop sign displayed, will come to a complete stop not closer than 20 feet from the bus. Drivers will not proceed until either the school bus resumes movement, or the driver is directed to proceed by proper authority. ***EXCEPTION:*** Drivers are not required to stop if traveling in the opposite direction of the school bus on a 4-lane or wider roadway.

A2.31. Reckless Driving. No person shall drive a motor vehicle in any reckless manner.

A2.31.1. Reckless means that the driver‘s manner of operation of control of the vehicle was, under all circumstances, of such a heedless nature that made it actually or imminently dangerous to vehicle occupants or safety of others. Additionally, any person who operates any vehicle and exceeds the posted speed limit by more than 30 miles per hour may be charged with reckless

driving and apprehended. ***EXCEPTION:*** Drivers who are caught exceeding the posted limit by twice the legal limit in any of the HAFB housing areas may be charged with reckless driving and apprehended.

A2.32. Negligent Driving. Any person who operates any vehicle in a manner reflecting a lack of due care for the safety of persons or property is guilty of negligent driving.

A2.33. Following Too Closely. The driver of a motor vehicle shall not follow another vehicle closer than is reasonable and prudent, having due regard for the speed of such vehicle and the weather and road conditions. See also paragraph A2.4.5.

A2.34. Entry and Departure of HAFB.

A2.34.1. Vehicles will enter and depart HAFB only through authorized entry control points.

A2.34.2. Vehicles entering HAFB are required to stop unless otherwise directed by an authorized official.

A2.34.3. Motor vehicle operators entering HAFB **shall not** utilize their Cellular Phone while at the installation entry control point or while driving on HAFB. A hands free device is acceptable for use on HAFB.

A2.35. Obscene Graphics. Vehicles will not be painted or marked with obscene words, figures, slogans, or bumper stickers and license plates that distract other vehicle operators. When SFS notices or receives a report, coordinate with 49 WG/SJA to determine actions and review of AFI 51-208, *Political Activities, Free Speech And Freedom Of Assembly Of Air Force Personnel*.

A2.36. Driver Distractions. Vehicle operators on a DoD installation and operators of Government owned vehicles will not use cell phones unless the vehicle is safely parked or unless they are using a hands-free device. The wearing of any other portable headphones, earphones, or other listening devices (except for hands-free cellular phones) while operating a motor vehicle is prohibited. This includes, but is not limited to, the use of headsets, earbuds, earphones and other listening devices containing or connected to any source of sound. Motorcycle helmet intercoms are excluded. Use of those devices impairs driving and masks or prevents recognition of emergency signals, alarms, announcements, the approach of vehicles, and human speech. Using a cell phone while driving, without a hand free device will be considered a "primary offense", meaning that violators will be able to be stopped solely for this offense. **NOTE:** One ear piece, one earbud, single earphone, single headphone, or single headset is not allowed.

A2.36.1. This does not negate wearing of hearing protection when conditions and good judgment dictate its use such as when driving in noise hazard areas. This restriction does not apply to intercom systems worn by motorcycle operators and their passengers.

A2.37. Motorcycles, Mopeds, Motor Scooters and three/four wheeled Motor Vehicles.

A2.37.1. For the purpose of this instruction, the terms motorcycle, moped, scooter, and any three/four-wheeled motor vehicle are synonymous unless otherwise specified. Operators of these types of vehicles will obey all traffic laws pertaining to other motor vehicles, as well as requirements and restrictions set forth in this instruction.

A2.37.2. In accordance with AFI 91-207, Table 4.1., all military members operating motorcycles, regardless of location will successfully complete Initial Training. Courses

approved include the MSF Rider Street Skills (RSS), Basic Riders Course (BRC), state approved motorcycle safety curriculum and any DoD Component approved training course. All Air Force civilian personnel (DoD Civil Service employees) who operate a motorcycle while on duty, on or off HAFB and/or any other DoD installation, must attend or have attended, and possess proof of completing, an approved motorcycle rider safety course. Proof of course completion will be a Certification/Completion Card.

A2.37.3. For the purpose of this directive, riders are defined as both operator and any passenger. All motorcycle riders on HAFB will comply with DoD and AF requirements. Additionally, regarding personal and vehicle safety equipment requirements for any motorcycle riders on HAFB, the following equipment is required:

A2.37.3.1. Headlights (when equipped). All motorcycles, mopeds, motor scooters, three wheeled vehicles, and ATVs will have headlights turned on at all times when operating on a DoD installation on or off road, except where prohibited during military mission or by state or local law.

A2.37.3.2. All vehicles must have rearview mirrors on both sides of the handlebars.

A2.37.3.3. Head Protection. A helmet, certified to meet current Federal Motor Vehicle Safety Standard No. 218 (DOT), United Nations Economic Commission for Europe (UNECE) Standard 22.05, British Standard 6658, FIM, or Snell Standard M2020 shall be worn and properly fastened under the chin. Commanders may authorize use of combat helmets for operating tactical vehicles (e.g., motorcycles and ATVs) during operations and training based on a RM evaluation.

A2.37.3.4. Eye Protection. Goggles, wrap around glasses, or a full-face shield (properly attached to helmet) designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1, or UNECE 22.05, or BS6658 for impact and shatter resistance will be worn and properly used. A windshield does not constitute proper eye protection.

A2.37.3.5. Protective Clothing. Wearing of long sleeved shirt or jacket, long trousers and full-fingered gloves or mittens is required. Gloves or mittens will be made from leather or other abrasion-resistant material. Gloves should be a sturdy, non-slip type to permit a firm grip on the controls. Wearing of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar®, and/or Cordura® containing impact absorbing padding is strongly encouraged. Fluorescent colors and retro-reflective material is not required but encouraged.

A2.37.3.6. Foot Protection. Sturdy, over the ankle footwear that affords protection for the feet and ankles (durable leather or ballistic-type cloth athletic shoes that cover the ankles may be worn). Sandals, low quarters, sneakers and similar footwear will not be used.

A2.37.3.7. Tactical Motorcycle and ATV Rider Protection. All on-duty riders of government-owned motorcycles and ATV operators during off-road operations will also wear knee pads, shin guards, and padded full-fingered gloves. Special duty requirements may dictate limited compliance.

A2.37.3.8. Riders are encouraged to use other methods of increasing conspicuity such as headlight and brake light modulators, auxiliary running lights, reflective tape to the sides of the motorcycle and installation of position/marker lights.

A2.38. Motorcycles, Mopeds, Motor Scooters, and three/four wheeled Motor Ground Transportation.

A2.38.1. A person operating a motor-driven cycle will only ride upon the permanent/regular seat attached, feet will rest upon footrests of the cycle, and passengers will not be carried unless the cycle is designed for two or more people and footrests are also provided for the passenger(s). No passenger (human or animal) or cargo may ride or be carried in front of the operator.

A2.38.2. Persons operating a motor-driven cycle or moped will not operate near any building and/or quarters except on approved streets, paved surfaces. Persons operating a motor-driven cycle or moped will not operate any cycle around animals (domesticated or non-domesticated) in a manner, which may excite or frighten the animal.

A2.38.3. Persons operating a motor-driven cycle or moped will not operate their vehicle riding two or more abreast in the same lane of travel. Persons operating a motor-driven cycle or moped will not touch or pass objects from one vehicle to another or in any way cause their vehicle to be a hazard to other vehicles and/or pedestrians while the vehicle is in motion.

A2.38.4. In accordance with AFI 91-207 only operators may ride mopeds; NO passengers are permitted unless the moped is designed to carry passengers.

A2.38.5. Additional Rules of the Road. Operators of motor-driven cycles will comply with all directives governing motor vehicle use and:

A2.38.5.1. Will not operate motor-driven cycles or go-carts near residences except on approved street or driveways. They will not be operated on lawns, sidewalks, fields, or other unpaved areas.

A2.38.5.2. May operate vehicles manufactured for off-road use on the roadway or streets only when the off-road vehicle is properly registered, insured, and meets requirements in paragraphs A2.38.5.2.1. through A2.38.6.2.4. Operators must be able to show proof of registration and insurance upon request by security forces or wing safety.

A2.38.5.2.1. Off-road style privately owned open 4-wheel vehicles, properly licensed in accordance with the state of New Mexico requirements for on-road use, may be operated as private use on-road vehicles on HAFB by properly licensed operators. All vehicles operated on HAFB must be insured and the operator must carry proof of valid insurance. No one under the age of 18 will operate these vehicles on HAFB roadways. Sponsors will ensure all dependents comply with the paragraphs below and are also insured. As with other on-road vehicles, these 4-wheel vehicles will not operate off-road, on seeded areas, or undeveloped areas of HAFB unless where specifically allowed for IAW base guidance.

A2.38.5.2.2. For privately owned open 4-wheel vehicles utilizing a saddle style seat, the following equipment rules apply in addition to any New Mexico Department of Transportation (NMDOT) requirements: headlights will be on at all times while in operation; operators and passengers must wear motorcycle PPE IAW AFI 91-207, *U.S. Air Force Traffic Safety Program*.

A2.38.5.2.3. Operators of off-road style open 4-wheel vehicles utilizing a saddle type seat are required to complete a Specialty Vehicle Institute of America or equivalent performance based course and carry proof of completion during on and off installation on-road use. The Air Force is not required to pay for riders to attend this training for use of privately owned 4-wheel vehicles.

A2.38.5.2.4. Operators and occupants of enclosed, bench, or bucket seat and seat belt equipped off-road style vehicles require no special training or PPE unless the vehicle is not equipped with

a windshield. In such a case, all occupants are required to wear eye protection IAW AFI 91-207. Contractor use of off-road style vehicles and PPE will be IAW the contractor's safety plan and applicable contract requirements.

A2.38.5.2.4.1. Non-tactical Motorcycle, ATV, UTV, and Recreational Off-Highway Vehicle (ROHV) Operator Training. IAW DODI 6055.04, operators of government-owned or -leased ATVs, UTVs, or ROHVs must complete an approved safety training course before operating the vehicle. Courses must be approved by the DoD or DoD Components and include all manufacturer's safety and operating requirements for the vehicle. Examples of State-approved courses are those offered by the Specialty Vehicle Institute of America and Recreational Off-Highway Vehicle Association. Courses may be tailored to include specific mission requirements in addition to the manufacturer's requirements. Contact 49 WG Safety for further guidance.

A2.38.5.3. Will be operated with both hands on the handlebars at all times.

A2.38.5.4. Will not lend their motor-driven cycle or moped to another operator without first ensuring that operator is properly trained, insured, and licensed.

A2.38.5.5. Will not allow children under the age of four to be carried as a passenger on a motor-driven cycle unless carried in a specifically designed and approved child seat for that vehicle.

A2.38.5.6. Children who are not tall enough to naturally reach the foot pegs may not be carried as a passenger on a motor-driven cycle.

A2.38.6. Driver's License and Learner's Permit.

A2.38.6.1. Persons operating motorcycles, mopeds, or motorized scooters must meet the licensing requirements of NM state law or the state in which their driver's license was issued.

A2.38.6.2. Persons who own motorized scooters (gas or electric) and don't meet the age and licensing requirements of NM state law for motorcycles and mopeds; **may not** operate a motorized scooter on HAFB roadways.

A2.38.6.2.1. Learner's Permit for Motorcycle. Persons must have in their possession a valid NM state learner's permit and a completion card issued by the MSF Basic Rider Course showing completion of the required motorcycle course to operate motorcycles and mopeds. Completion of the motorcycle safety course is not required for scooters if over the age of 18. Persons under the age of 18 must have completed an approved motorcycle safety course.

A2.38.6.2.1.1. Persons may not operate a motorcycle, moped, motor scooter, or light motor driven cycle from midnight to 6 a.m. with a learner's permit unless you are accompanied by a Class M licensed parent or guardian.

A2.38.6.2.2. Driver's License for Motorcycle. Persons must have a valid state driver's license with a motorcycle endorsement and a completion card issued by the wing safety office, MSF instructor or any course approved by AFSEC, showing completion of the required motorcycle course to operate motorcycles and mopeds.

A2.38.6.2.3. Moped License Requirements. To operate a moped on HAFB roadways, you must have a valid driver's license, a permit or a valid moped operator's license and completion of an approved motorcycle safety course.

A2.38.6.2.4. Moped. A moped is a cycle with pedals or without pedals and with a motor of not more than 50 cubic centimeters. Its power will not exceed two brake horsepower and the motor is not capable of propelling the vehicle at a speed in excess of 30 miles an hour on level ground. The power drive system must function directly or automatically without clutching or shifting after the engine is engaged.

A2.38.6.2.4.1. No person may operate a moped at a speed in excess of 25 miles an hour.

A2.38.6.2.4.2. It is unlawful for any person to modify or change the equipment of a moped so that the vehicle exceeds two brake horsepower and produces speeds in excess of 30 miles per hour on level ground.

A2.39. Bicycle Operations.

A2.39.1. Cyclists, including minors, riding bicycles on HAFB will observe the same traffic rules required of a motor vehicle operator. All persons operating a bicycle on HAFB are subject to all bicycle requirements set forth in the current 49 WG guidance memorandums for All Wheeled Vehicles on the installation.

A2.39.2. Cyclists, those operating a non-motorized means of conveyance including but not limited to bicycles, tricycles, unicycles, skates, roller-blades, skateboards, and scooters are required to wear a safety helmet and shoes. (The wear of gloves, elbow, and knee pads are highly recommended). Helmets must be approved by either the American National Standards Institute (ANSI) or Snell Memorial Foundation. The wear of shoes, gloves, and elbow and knee pads is highly recommended. Additionally, for any wheeled form of transportation operated on sidewalks, operators must yield to all pedestrian traffic.

A2.39.3. Cyclists are prohibited from using any crosswalk, sidewalk, driveway, or any other area not designated as a traffic lane for bypassing a traffic control device. Cyclists will use bicycle lanes if provided. Bicycles will not be ridden on any sidewalk within the business area in a manner that interferes with pedestrian traffic (i.e., Exchange, bank, credit union, commissary, campus area, etc.).

A2.39.4. Cyclists on roadways will be in single file, as far to the right as possible, and use extreme caution when crossing heavily traveled intersections/roadways.

A2.39.5. Cyclists will never assume the right-of-way over other vehicles. Cyclists will use proper hand and arm signals when turning or stopping. All hand signals will be executed with the left hand.

A2.39.6. A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached thereto. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

A2.39.7. Cyclists, persons on coasters, skateboards, roller skates, or roller blades will never cling or hold on to another moving vehicle.

A2.39.8. Carrying Articles. No person operating a bicycle shall carry any package, bundle, or article which prevents the rider from keeping at least one hand upon the handle bars.

A2.39.9. Lamps and reflectors on bicycle. Cyclists riding during the hours of darkness shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front and with a red reflector on the rear which shall be visible from all

distances from 50 feet to 300 feet to the rear when directly in front of the lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector. Cyclists riding during the hours of darkness and reduced visibility **must** wear a viewable reflective vest and/or belt.

A2.39.10. Brake on bicycle. Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.

A2.39.11. All personnel are encouraged to mark their bicycles (property of value) with their name. Owners should record the make, model, and serial number and keep this information in a safe place.

A2.40. Coaster-Wheeled Conveyance.

A2.40.1. The use of coaster-wheeled conveyance (defined as any form of object propelled afoot to include, but not limited to, in-line skates, roller skates, roller blades, scooters without motors, or skateboards), to include use by minors, will observe the same traffic rules required of a motor vehicle operator. Operators will use bicycle lanes if provided, are allowed on any roadway, parking lot, or sidewalk when using it to traverse through, and doesn't interfere with the flow of traffic and not for, "stunts, exhibitions, or other trick-type activity". Operators will yield right of way to pedestrians.

A2.40.2. All persons using a coaster-wheeled conveyance are required to wear an approved safety helmet. Helmets will meet American National Standards Institute or Snell Memorial Foundation criteria. In addition to an approved helmet, the wear of elbow pads, kneepads, and wrist guards are required.

A2.40.3. Jumping ramps are not authorized along any roadway, parking lot, or sidewalk, except at the housing units with private driveways and the skate park(s).

A2.41. Bicycle and Coaster-Wheeled Conveyance Violations.

A2.41.1. These rules shall apply while on HAFB, or any other government property under the jurisdiction of HAFB, to include parks, sidewalks, and parking lots.

A2.41.2. Persons in violation of the above bicycle and coaster-wheeled conveyance instructions may be charged IAW Article 92 UCMJ, for Failure to Obey Lawful Order or Regulation via AF Form 3545.

A2.41.3. Parents/Guardians are expected to educate children on the proper use of safety equipment and all traffic laws.

A2.41.4. For safety reasons, no person is allowed to play baseball, street hockey, football, soccer, kickball, or any other recreational sport on HAFB roadways. A child who is allowed to play baseball, street hockey, football, soccer, kickball or any other recreational sport on any HAFB roadway is considered to be improperly supervised by his/her parent or guardian. Active duty members are responsible for their dependents/guests at all times, and will be held accountable for the actions of their dependents.

A.2.42. Government Low Speed Vehicles (LSV).

A.2.42.1. Self-propelled assets providing a basic transportation capability (i.e., golf carts) not meeting specifications of OSHA regulation, 49 CFR 571.500, LSVs are prohibited on any

roadway, parking lot, or sidewalk, except in established work areas designated by the installation commander. Personnel will wear appropriate Personnel Protective Equipment as directed by unit commanders.

A2.42.2. Installation commander designates only paved roadways as authorized areas for operation of LSVs.

A2.42.3. Government Vehicle Other (GVO) also known as Government Motor Vehicle Conveyances (GMVCs) will be operated in off-road and tactical locations as much as possible. GORMVs are authorized in traffic, industrial or pedestrian environments as deemed appropriate by unit commanders IAW AFI 91-207 paras 2.2.2.-2.2.2.4. Personnel will wear appropriate Personnel Protective Equipment as directed by unit commanders.

A2.43. Off-road vehicles usage.

A2.43.1. HAFB does have a designated area for operation of privately owned ATVs and dirt bikes; of which access is solely granted by the 49 WG Safety office. For this reason, only government-owned ATVs may be operated off-road on HAFB for conducting official military business.

A2.43.2. Privately–owned ATV/Dirt bike operators wanting to use the designated area must successfully complete, and possess proof of completion for, a Specialty Vehicle Institute of America safety course IAW AFI 91-207. The only accepted proof of the course completion is the SVI Course Certification Card. Contact the 49 WG Safety office for access to the area and additional requirements/info.

A2.44. Accident Reporting and Investigations:

A2.44.1. The driver of a GOV involved in any accident shall, if physically and mentally capable, immediately report such accident to Security Forces. GOV operators involved in off base accidents will also notify security forces. When the driver of such a vehicle is physically and/or mentally incapable of giving a report as required and there is another occupant in the vehicle capable of reporting the accident, then he/she shall be responsible for notifying Security Forces. The driver of the GOV shall refrain from making oral or written statements to claimants and/or their agents regarding liability, cause of accident or claims. The GOV operator shall immediately complete a Standard Form 91, *Motor Vehicle Accident Report,* at the scene and turn it into the units' vehicle control officer/NCO within 24 hours. The driver of a privately-owned vehicle (POV) shall, if physically and mentally capable, immediately report the accident to Security Forces. Passengers of POVs have the same reporting responsibilities stated above. Any person involved in a vehicle accident shall administer first aid (not to exceed your training level) and summon an ambulance if required.

A2.44.2. Witnesses shall remain at the scene and advise the responding patrol that they are a witness to the accident. If the witnesses cannot remain on scene, they are required to immediately notify the BDOC they witnessed the accident.

A2.44.3. Anyone initially arriving at an accident scene before any emergency response units shall be responsible for stopping and rendering aid to any injured person and notifying Security Forces. **NOTE:** Ensure caution is used to reduce the possibility of creating additional damage or injury (i.e., not leaving your vehicle running while unattended to aid others or moving victims into the street instead of the curb).

A2.44.4. The BDOC controller shall dispatch appropriate Security Forces units to accomplish accident investigative and management measures. For major accidents, the BDOC controller shall notify the wing safety office, base fire department, and the base clinic.

A2.44.5. The driver of a vehicle involved in an accident resulting in injury or death to any person or damage to any vehicle shall immediately stop the vehicle at the scene of the accident and notify Security Forces. The driver shall remain at the scene of the accident until all requirements of the accident investigation have been satisfied and Security Forces have released all individuals involved. The driver shall provide his/her name, grade, social security number, address, and driver's license number to assist law enforcement with the completion of AF Form 1315, *Accident Report*. Drivers of government vehicles shall provide the vehicle registration number to the driver or occupant of any other vehicle involved in the accident.

A2.44.6. The driver of any vehicle that collides with any unattended vehicle shall immediately stop and notify Security Forces. The driver shall attempt to locate and notify the owner of the vehicle that was struck. If the owner cannot be located, a written notice shall be left in a visible and obvious place on the unattended vehicle. The notice shall contain your name, address, phone number and a brief statement of the circumstances. The driver shall not leave the scene until instructed to do so by the investigating Security Forces member.

A2.44.7. The driver of any vehicle involved in an accident resulting in damage to fixtures or other property located on a street or roadway shall notify Security Forces and take reasonable steps to locate the owner or person in charge of such property, relay the facts and complete identification data.

A2.44.8. Moving a vehicle from the scene of an accident: Any vehicle involved in an accident shall not be removed until authorization is given by the investigating Security Forces member. In extreme circumstances, a vehicle may be moved only far enough to allow passage of an emergency vehicle.

A2.44.9. Minor Vehicle Accidents.

A2.44.9.1. Minor vehicle accidents involve:

A2.44.9.2. Damage to a government vehicle or government property (or a combination thereof) amounting to no more than $10,000 with no injury or fatality.

A2.44.9.3. POV accidents with non-disabling damage amounting to no more than $10,000 and no injury or fatality.

A2.44.10. Minor accidents shall be recorded in the Security Forces blotter and shall include, as a minimum:

A2.44.10.1. Accident type.

A2.44.10.2. Time, date and location.

A2.44.10.3. Names of vehicle operators, his/her unit or address for nonaffiliated military.

A2.44.10.4. Vehicle description and license numbers.

A2.44.10.5. Brief summary of damage/circumstances.

A2.44.10.6. Whether or not seatbelts were worn and if air bag deployed.

A2.44.11. Personnel involved in minor POV accidents are responsible for exchanging insurance information.

A2.44.12. A blotter entry, minor vehicle accident worksheet and statements shall be accomplished for minor vehicle accidents. Obvious violations observed by the patrolman shall be cited.

A2.44.13. Major Vehicle Accidents.

A2.44.13.1. Major vehicle accidents involve:

A2.44.13.1.1. An injury (evident or claimed) or fatality.

A2.44.13.1.2. Damage to a government or private vehicle or government property (or a combination thereof) amounting to more than $10,000.

A2.44.13.1.3. Disabling damage to a POV requiring towing.

A2.44.13.2. Determine whether or not seatbelts were worn and if air bags deployed.

A2.44.13.3. Major vehicle accidents shall be fully investigated by Security Forces and reported on AF Form 1315, *Accident Report.*

A2.44.13.4. Reports of Survey. An investigation is conducted and final determination to process a report of survey is made by the approving or the appointing authority.

A2.45. Abandoned/Impounded Vehicles/Repossession of Vehicles. All privately owned vehicles on HAFB shall be maintained in operational condition and meet all base/ state registration requirements and state insurance requirements. Military members and their dependents will be briefed at the newcomer's briefings concerning the consequences of abandoned vehicles (paragraph 4.2). Military members will be briefed about the abandonment of personal property vehicles by squadron orderly room personnel upon permanent change of station. Vehicles undergoing maintenance at the AAFES Service Station and Services Squadron Auto Hobby Shop shall maintain current registration/insurance requirements. All vehicles in an obvious abandoned status or in a state of disrepair shall be addressed by Security Forces per the following:

A2.45.1. Responsibilities:

A.2.45.1.1. It is the responsibility of all 49 SFS Flight Chiefs and 49 SFS Investigations Section (49 SFS/S2) personnel to ensure compliance and proper procedures are followed when a vehicle is impounded or an abandoned vehicle is moved and stored.

A2.45.1.2. Vehicles will be impounded upon authorization of the on-duty Flight Chief or a Security Forces detective/investigator. Flight Chiefs and detectives/ investigators will coordinate with the base legal office prior to impoundment.

A2.45.2. Vehicles may be impounded or deemed abandoned if they:

A2.45.2.1. Are involved in criminal activity, interfere with traffic or threaten public safety.

A2.45.2.2. Are stolen and have been recovered.

A2.45.2.3. Contain evidence of criminal activity.

A2.45.2.4. Vehicle threatens public safety or convenience.

A2.45.2.5. The owner/care taker of the vehicle cannot be identified;

A2.45.2.6. A vehicle is observed with expired or no license plate or proof of insurance;

A2.45.2.7. Vehicle is in state of disrepair (i.e., extensive damage, flat tires, missing major parts, etc.).

A2.45.2.8. Vehicles left unattended or unmoved for an extended period of time; at least 72 hours and meets any of the above criteria.

A2.45.3. Identification of Abandoned Vehicles.

A2.45.3.1. Flight personnel and S2 are responsible for assisting in identifying possible abandoned vehicles. If a suspected abandoned vehicle is identified by flight personnel or the public:

A2.45.3.2. Issue a DD Form 1408 citing "Alleged Abandoned Vehicle" as the violation. The ticket will state why the vehicle appears to be abandoned and the vehicle is required to be moved or fixed within 72 hours of receipt of the citation. The pink copy will be placed on the vehicle in plain sight. Additionally, issue a DD Form 2504, *Abandoned Vehicle Notice,* with a copy of the DD Form 2504 placed with 1408.

A2.45.3.3. Issuing patrolperson will ensure that a copy of the NMLETS printout indicating the last registered owner is attached to the copies of DD Form 1408 and DD Form 2504 that are turned into Police Services/S5AR.

A2.45.3.4. Police Services and/or Reports and Analysis will notify S2 of the 1408 and 2504 being issued. S2 will monitor the vehicle for the 72 hour period.

A2.45.3.5. The DD Form 1408 and DD Form 2504 will be processed by 49 SFS/S3O and S5AR and then forwarded to S2.

A2.45.3.6. S2 will maintain the DD Form 1408 and DD Form 2504 within the Abandoned Vehicle case file.

A2.45.3.7. Should the vehicle owner report to 49 SFS during the 72 hour period, S3O or S2 will ensure any defects and required documentation for the vehicle have been corrected and the vehicle is authorized on the installation.

A2.45.3.8. If after 72 hours the vehicle is not moved, reason for abandonment corrected or the owner has not contacted BDOC or S2, S2 will attempt to locate the owner.

A2.45.3.9. S2 will attempt to locate the owner and if located; advise the owner they are responsible for moving vehicle or fixing the defects (non-operational, expired registration, etc.) within a reasonable timeframe. S2 will also notify the First Sergeant of the owner.

A2.45.3.10. If the owner is active duty, was contacted and doesn't fix or move the vehicle, coordinate with 49 WG/SJA on possible legal actions and commander involvement.

A2.45.3.11. If the vehicle defects and required documentation for the vehicle have been corrected, the DD Form 1408 will be reduced to a "warning ticket" and turned into 49 SFS/S5AR.

A2.45.3.12. If defects are not corrected and arrangements cannot be made to correct them, the DD Form 1408 will be forwarded to 49 SFS/S5AR for final disposition.

A2.45.3.13. If the vehicle owner was not able to be located by S2 after the citation, DD Form 2504, was issued, after 72 hours has passed and after a reasonable time to attempt to contact the owner by S2; S2 will begin the process to have the vehicle impounded.

A2.45.4. 49 SFS/S2 will:

A2.45.4.1. Inspection and inventory the impounded vehicle.

A2.45.4.2. Respond to the vehicle location and accomplish pictures depicting vehicle condition.

A2.45.4.3. Prior to impounding, vehicles will be inspected and inventoried using DD Form 2506, *Vehicle Impoundment Report*.

A2.45.4.4. Accomplish an AF Form 52, *Evidence Tag*, on the vehicle.

A2.45.4.5. Vehicles will be inspected for, but not limited to:

A2.45.4.5.1. General appearance (i.e., body damage, broken glass, tires).

A2.45.4.5.2. Accessories (e.g., radio, stereo, spare tire, tools). If a container such as a suitcase is found inside the vehicle, it must be sealed with security tape and inventoried. If the item is deemed necessary to open (i.e., it presents a danger to the public or to identify the owner), all the items must be inventoried to maintain security.

A2.45.4.5.3. Certificate of title, bill of sale, and other documents related to vehicle ownership.

A2.45.5. Procedures for storage of impounded vehicles.

A2.45.5.1. Wrecker/towing service may be obtained through the 49th Logistics Readiness Squadron/Ground Transportation (49 LRS).

A2.45.5.2. Arrange for the vehicle to be towed by 49 LRS/Ground Transportation to Bldg 75602/SF impoundment lot.

A2.45.5.3. S2 will submit a 49 LRS/Ground Transportation Request for Vehicle Transportation; identifying the need for towing.

A2.45.5.4. Upon an agreed upon towing date, S2 will meet the 49 LRS tow vehicle at the abandoned vehicle and provide the 49 LRS Ground Transportation driver with a completed DD Form 2505, *Abandoned Vehicle Removal Authorization.*

A2.45.5.5. Once the vehicle is placed in the impoundment lot S2 will provide BDOC with information for a Impounded Vehicle blotter entry and will also complete a AFJIS report.

A2.45.5.6. After impoundment S2 will continue to attempt to locate and verify the current registered or last known owner of the vehicle or lienholder.

A2.45.5.7. Initiate and forward a copy of DD Form 2507, *Notice of Vehicle Impoundment*, to the last known address of the owner via certified mail. **Note:** If a lien exists on the vehicle, the company holding the lien will be contacted.

A2.45.6. Vehicle Release. Impounded vehicles will only be released by S2 using the following guidelines:

A2.45.6.1. If the vehicle was impounded as evidence, release and disposition will be as directed by the legal office.

A2.45.6.2. If the vehicle was impounded as abandoned it will be released to either: the owner, lien holder, Defense Logistics Agency (DLA), destroyed or transferred to a Non-appropriated Fund Instrumentality (NAFI) that can and does use the property in its program. If released to the owner:

A2.45.6.3. The owner must show current proof of ownership for the vehicle.

A2.45.6.4. The owner must show current insurance documentation and vehicle registration for the vehicle if the vehicle is to be driven.

A2.45.6.5. If the vehicle is to be released to DLA ensure timeframes for attempting to notify the owner or lien holder (if applicable) are fulfilled in accordance with DOD 4160-21-M, Defense Material Disposition Manual.

A2.45.6.6. If released to DLA, destroyed, or released to NAFI, remove state vehicle registration decals and license plates and turn over to NM DMV in Alamogordo.

A2.46. Drunk Driving/DUI:

A2.46.1. It is unlawful for any person who is under the influence of alcohol or drugs to be in actual physical control of any vehicle at any time on HAFB. This includes being behind the steering wheel of a parked car with the key in the ignition regardless of whether the engine is running.

A2.46.2. The operators and passengers of motor vehicles on HAFB are prohibited from having open containers of alcoholic beverages in their ready possession. “Open container” means any bottle, can, or receptacle containing any alcoholic beverage that has been opened, or the seal broken, or the contents of which have been partially removed. “Ready possession” means located in the passenger compartment of the vehicle or accessible to the driver or passengers from the passenger compartment. No person shall transport in any vehicle, or have in his/her possession in any vehicle, any alcoholic beverage or beverage with any alcoholic content (except over-the-counter medications or prescribed pharmaceutical medications), where such container is open or the seal broken, except that such containers may be stored out of arm's reach of the driver or the passenger in a closed trunk compartment or bed of a pick-up truck.

A2.46.3. If an active duty military person detained for suspected drunk driving refuses a chemical test of breath, blood, urine or any combination thereof, an AF Form 1176, *Authority to Search and Seize,* shall be accomplished by the apprehending Security Forces member. An affidavit of refusal to submit to breath, urine or blood test shall also be accomplished by the apprehending Security Forces member. 49 WG/SJA will be contacted by Security Forces member to determine authority to search and seize the blood sample. As a general rule, forced extractions are considered only when an individual is involved in an accident in which there is a death, serious personal injury, or significant property damage. After coordination with 49 WG/SJA and the search authority’s approval, the suspect shall then be transported to the base clinic by the apprehending Security Forces member and a blood sample shall be taken by a qualified technician. After collection, the specimen shall be handled by laboratory personnel in accordance with 49 MDG directives. After testing, results shall be picked up by 49 SFS/S5AR when available at the clinic TRICARE office.

A2.46.4. When a person has given consent to chemical testing via Implied Consent Law an AF FM 1364 is not required and suspect shall then be asked to provide a breath sample IAW NM

procedures for the Intoxilyzer 8000. However, if the chemical testing is via blood, an AF Form 1364, *Consent for Search and Seizure*, is accomplished by the apprehending/detaining Security Forces member. The suspect is transported to the base clinic by the apprehending Security Forces member where a blood sample shall be taken by a qualified technician. After collection, the specimen shall be handled by laboratory personnel in accordance with 49 MDG directives. After testing, results shall be picked up by 49 SFS/S5AR when available at the clinic TRICARE office.

A2.46.5. Persons apprehended/detained for drunk driving/DUI shall be processed using AF Form 3545/AFJIS. For civilians and dependents, the CVB Violation Notice shall also be used. Procedures in this paragraph shall take place if the driver refuses to permit to chemical testing, or is under 21 and .01 or higher.

A2.46.6. Commanders shall take appropriate action utilizing AFJIS report, AF Form 3545, DD Form 1920, AF Form 1168, *Statement of Suspect/Witness/Complaint*, and other supporting documents contained within the report.

A2.47. Parking.

A2.47.1. Parking is authorized only in areas normally designated by two white lines or marked off on paved areas by paint, barriers, cones, signs and/or at the direction of a Security Forces member. Parking on unpaved areas is not authorized except during special events. Parking is not authorized on dirt roads behind base houses.

A2.47.2. Unless otherwise prohibited, parallel parking is authorized on streets in Soaring Heights Communities/Base Housing only on the side opposite a no parking fire lane sign, fire hydrant side of the street, and/or where marked with paint. Some locations do not permit parking along both sides of the street due to narrowness, fire hydrants and need for emergency response vehicles (i.e. fire trucks). Vehicles may be parked in designated parking areas only. No vehicles may be parked on grass, seeded, or xeriscape concept areas at any time.

A2.47.3. Except as otherwise provided in this instruction, vehicles stopping or parking on two-way roadways will do so with both passenger-side wheels within 12 inches of the right curb or paved edge of the roadway.

A2.47.4. Parallel parking is only authorized within the family housing areas.

A2.47.5. Only motorcycles will park in designated motorcycle parking spaces, with no exceptions for inclement weather.

A2.47.6. Parking is Prohibited:

A2.47.6.1. Within 15 feet either side of a fire hydrant, except emergency vehicles performing official duties.

A2.47.6.2. In a designated handicapped parking space without evidence of permission to use such a space from the holder to whom that permission was issued. “Evidence of permission” can include any state's handicapped parking identification media, or locally devised cards or forms approved by the installation commander.

A2.47.6.3. In any area painted (red, yellow, or white) with diagonal lines or painted curbs or striping.

A2.47.6.4. In front of a garage or cubicle unless it is assigned to the vehicle operator.

A2.47.6.5. Within 20 feet of a fire station driveway. **EXCEPTION:** Fire department vehicles are exempt from this provision.

A2.47.6.6. In any way that obstructs the visibility of a traffic control device.

A2.47.6.7. Within 20 feet of a crosswalk at an intersection.

A2.47.6.8. Within 20 feet of an intersection or traffic control device.

A2.47.6.9. Within 20 feet of a building, except in designated parking areas and unless the area is specifically designated for parking or loading/unloading is taking place.

A2.47.6.10. Parking is prohibited when exceeding posted time limits in parking areas.

A2.47.6.11. Parking is prohibited in a reserved parking slot, when the slot is not assigned to the vehicle operator.

A2.47.6.12. Parking is prohibited when using two designated parking slots.

A2.47.6.13. Parking is prohibited when parked on a white line or lines of a designated parking slot.

A2.47.6.14. On, in front of, or blocking public driveways, sidewalks, walkways, pedestrian crossings or entrance/exit ways, or at the rear of a legally parked vehicle.

A2.47.6.15. In fire lanes.

A2.47.6.16. On a roadway, regardless of whether the vehicle is attended.

A2.47.6.17. In any area marked as a prohibited or non-designated parking area.

A2.47.6.18. In any area located south of the base main gate to US Highway 70.

A2.47.6.19. In any area designated a bus stop zone.

A2.47.6.20. Anywhere on base roadways when the purpose is major or minor vehicle repairs.

A2.47.7. Vehicles parked on base are required to maintain proper state registration, insurance, and remain in a good state of repair.

A2.47.8. “Remote Start” is authorized in base housing and installation parking lots if there are no children or pets in the vehicle.

A2.47.8.1. Vehicles shall not be left unattended with the engine running or containing children IAW HAFB Youth Supervision Guidelines:

A2.47.8.2. Ages 7 and below, No.

A2.47.8.3. Ages 8 through 9, Yes, keys removed, handbrake applied; 15 min. max, adult within sight (considerations: weather, temp, ventilation).

A2.47.8.4. Ages 10 through 11, Yes, keys removed and handbrake applied (considerations: weather, temp, ventilation).

A2.47.8.5. Ages 12 and beyond, Yes (considerations: weather, temp, ventilation).

A2.47.9. Vehicles shall not be left unattended with animals within unless the windows are left open enough to provide adequate ventilation. (Considerations: weather, temp, ventilation).

49 SFS K9 patrols, with appropriate vehicle kit and air conditioning on, are authorized to leave vehicles running with K9 inside.

A2.47.10. Vehicles shall not be parked in the Post Office, clubs, BX/Commissary parking lots or other community parking area in excess of 24 hours without notifying Security Forces.

A2.47.11. POVs not used as primary transportation displaying “for sale” signs shall only be parked in the POV Sales Lot, adjacent to the Auto Skills Center. The lot is maintained by the 49th Force Support Squadron Auto Skills Center.

A2.47.12. Except in designated areas, vehicles shall not be parked alongside the roadway unless for emergency repair.

A2.47.13. Recreational vehicles (RV) (defined as boats, trailers, regardless of size, 2/3/4 wheeled off-road vehicles, campers, un-mounted campers/camper shells (for pickup trucks), motor homes, travel trailers or fifth-wheel trailers of all sizes, trucks other than pickups and any vehicle that is “awaiting restoration”):

A2.47.13.1. Shall not be parked on any street in base housing or the dormitory parking lots except as follows:

A2.47.13.1.1. When properly registered and used as a primary vehicle by the owner.

A2.47.13.1.2. Just prior to departing or returning from an outing for loading and unloading. RVs may also be parked in the housing area for one day before and after a trip for packing and unpacking.

A2.47.14. The RV lot adjacent to the base motor pool is the designated off-street parking area for recreational vehicles only.

A2.47.15. The RV lot is for recreational vehicles only.

A2.46.16. Assignment of spaces in the RV lot is controlled by Outdoor Recreation, 49 FSS/FSCO.

A2.47.17. Military personnel living in family housing shall remove their vehicles from the RV lot prior to final housing inspection.

A2.47.18. Military personnel residing in the dormitory shall contact 49 FSS/FSCO and arrange removal of their vehicle prior to out-processing.

A2.47.19. Because of duty requirements, 49 WG/CC and the group commanders shall have reserved parking spaces at facilities deemed necessary to ensure mission effectiveness.

A2.47.20. Reserved parking spaces for handicapped are authorized at all public service facilities (e.g., MPF, BX, finance, hospital). Only vehicles displaying official handicapped decals, placards and/or special issue state plates are authorized in these spaces.

A2.47.21. Units, sections or agencies shall not (except as authorized herein) reserve or otherwise prohibit parking in any authorized or designated parking space.

A2.47.22. Reserved parking spaces are not transferable. When an organization moves to a new location, requests for reserved parking spaces shall be resubmitted and existing signs and/or markings removed.

A2.47.23. During visits by higher headquarters/distinguished visitors, temporary signs may be posted with the following terminology, “Reserved for Inspector” or “Inspector General”, or other similar terminology.

A2.47.24. Shared Parking. Facilities shall share parking spaces among one another for the economical use of available parking spaces and in place of additional construction of parking areas.

A2.48. Miscellaneous.

A2.48.1. No major maintenance to privately owned vehicles shall be performed on HAFB except at the Auto Skills Center or the AAFES Service Station. This maintenance includes oil/grease changes, repairing or replacing engines, transmissions/drive train, rear ends, drive shafts, brakes, replacing body parts; placing the vehicle on jack stands or drive-on ramps (excluding tire changing), or any other major automobile component, any repair disabling the vehicle for six hours or longer are also prohibited. Minor emergency maintenance is authorized only when the vehicle cannot be moved and then only to the extent necessary to move the vehicle to an authorized service area.

A2.48.2. Emergency repair may be made as needed and other maintenance may be conducted if a hazard is not created. Unattended vehicles may not be left elevated on jacks or similar equipment except at authorized repair areas such as the Auto Skills Center or BX Service Station. Oil and similar fluids shall be properly disposed of and not allowed to drain on the roadway or ground. Trash bins shall not be used to dispose of these fluids.

A2.48.3. Major repairs will also not be made in base parking lots to include in Soaring Heights Communities/Base Housing.

A2.48.4. Emergency Road Repair. The driver shall be responsible for removing his disabled vehicle from the roadway or constantly attending it until it is removed.

A2.48.5. The owner of a motor vehicle shall be the subject in all vehicle complaints where the operator of said vehicle cannot be determined.

A2.48.6. Erection, removal, destruction or tampering with any traffic sign, signal or device is prohibited without the prior approval of the Installation Traffic Engineer. Unresolved differences shall be brought before 49 MSG/CC.

A2.48.7. No person shall throw or leave litter, garbage, debris of an accident or refuse on or about a roadway, parking lot or any other area, except in designated receptacles. Those observed littering shall be cited, and military members may be subject to punitive action under the UCMJ. Civilians could be barred from the base and/or issued CVB Violation Notice.

A2.48.8. The owner of a vehicle with minor defects shall be issued a DD Form 1408 with instructions to report to the DFC (Defense Force Commander)(in-turn 49 SFS/S5AR) at building 35 within 72 hours. If the defect has been corrected, it is annotated on the traffic ticket and the ticket is voided. If the defect is not corrected, the ticket shall be processed and three points assessed for other violations involving driver behavior.

A2.48.9. The towing of one POV by another is permitted only with a tow bar. Warning shall be displayed IAW NMSA 66-3-815 indicating a vehicle is in tow.

A2.48.10. No person shall drive any vehicle in any race, speed competition or contest, drag or acceleration contest, test of physical endurance, exhibition of speed or acceleration, or participate in any such race, competition, contest, test or exhibition. A DD Form 1408 shall be issued for military members and a CVB Violation Notice for civilian personnel pursuant to NMSA 66-8-115a.

A2.48.11. In addition, stickers, decals, paintings or markings of a derogatory nature on any motor vehicle, bicycle or manually operated mode of transportation is prohibited.

A2.48.12. The Installation Traffic Engineer, Chief, Security Forces, or Traffic Coordinating Group (49 MSG/CC, 49 SFS/CC, 49 CES/CC, 49 WG/SE) may direct the use of official traffic control devices (i.e., electronic or traffic control points) to be placed in a manner that would change the normal flow of traffic temporarily or for special events. When such devices are in place, no motor vehicle operator shall operate a vehicle other than directed by such devices.

A2.48.13. Retreat. All traffic, vehicles and pedestrians shall come to a complete stop during the sounding of retreat.

A2.48.14. In accordance with DoD Instruction 6055.4, (paragraph E3.11.3), the use of RADAR or LASER detection devices on DoD installations is prohibited. Also prohibited is the operation of a device used to transmit simulated erroneous speeds.

A2.48.15. Motor vehicle operators will disable (turn off/disconnect) and remove from its operational mount (ex: suction cup windshield mount) any device designed to detect speed measuring equipment prior to entry onto installation. ***NOTE:*** Factory installed devices must be turned off prior to vehicle entering the installation.

A2.48.16. Parking lots will be classified as open for all personnel (no use of parking decals), but may be limited to patrons (e.g., BX) and Special Vehicles (e.g., ambulances). Refer to 49 CES/CEOE for the location, classification, and responsible organization of parking lots on the installation.

A2.48.17. Subdividing or changing parking lot boundary lines requires approval of the using organization, 49 CES/CEO, and 49 SFS/S3O.

A2.48.18. Maintenance and service vehicles, or POVs on official business, may stop at building entrances to load or unload cargo or equipment, providing other vehicular traffic is not obstructed and traffic hazards are not created.

A2.48.19. For Sale (Lemon) Lot. Personnel with POVs parked in the For Sale lot, adjacent to the Auto Skills center, will register and obtain a permit from the Auto Skills Center. All POVs parked in the For Sale lot will have a current state registration and vehicle liability insurance. There is a fee for this service.

A2.48.20. Recreational Vehicle (RV) Parking and Use. RVs (motor homes, fifth wheels, travel trailers, pickup truck campers, and pop-up/tent campers) pose unique problems for the installation. Their size, either alone or in conjunction with their towing vehicle, imposes challenges and obstacles to traffic. They also often require more than the single parking space allotted for POVs. The following rules govern the parking and use of RVs on base:

A2.48.21. RVs will not be occupied overnight unless registered and parked in the 49th Force Support Squadron (49 FSS)/Family Camping Area (FAMCAMP). On occasions where 49 FSS sponsors an activity and designates a parking lot for the use of RVs participating in that activity,

RVs parked in the designated area may only dry camp; there will be no connection to utilities (electric, water, and sewer). Generator use will be determined for each event (suggested 0600-2400 hours). Quiet hours will be from 2400-0600.

A2.48.22. Transient RVs may park at the Base Exchange, Commissary, and Shoppette for a reasonable length of time while their occupants are shopping in these facilities, but in no case will they remain overnight. Drivers will do everything possible to avoid causing obstruction to other traffic.

A2.48.23. Small RVs, such as pickup truck campers and small Class B motor homes, may be used by personnel to commute to and from work, only as long as the vehicles, when parked, occupy no more than a single parking space.

A2.48.24. All boats, campers, trailers, motor homes, and other recreational vehicles are permitted in Soaring Heights Communities/Base Housing areas only for the purposes of loading and unloading before or after a trip. Residents are authorized to park their recreational vehicles at their homes 24 hours before and after a trip to facilitate loading and unloading of their vehicles. Boats and trailers are not authorized to be parked in carports or garages in the Soaring Heights Community/Base Housing. Boats, trailers, and other recreational vehicles will be stored in the fenced compound behind the Shoppette and across the street from the CES Compound or off base. 49 FSS/FSCO controls the access to this compound. There is a fee for this storage service that must be coordinated with Outdoor Recreation.

A2.48.25. Unattended RVs in violation of the above criteria may be ticketed and towed at the owner’s expense. Repeated violations may result in denial of entry to the base.

A2.48.26. Military personnel arrested or apprehended by civil police for traffic related incidents/accidents will report this information to the BDOC within 24 hours of the incident.